

A MODERN PURGATORY

BY
CARLO DE FORNARO



NEW YORK
MITCHELL KENNERLEY
1917

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*** START OF THE PROJECT GUTENBERG EBOOK A MODERN
PURGATORY ***

Transcriber's Note:

A Table of Contents has been added.

A MODERN PURGATORY

By CARLO DE FORNARO

*CARRANZA AND MEXICO
A MODERN PURGATORY*

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NEW YORK
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PRINTED IN AMERICA

TO
M. L. R.

"It is believed in this country that a poor man has less chance to get justice administered to him than a rich man."

—Woodrow Wilson, in a speech in
Chicago, January 11, 1913.

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INTRODUCTION

This book is a record of the prison experiences of Carlo de Fornaro, artist, writer, editor, revolutionary. It is a record of experiences in the famous Tombs Prison, in New York City, and in the New York City penitentiary on Blackwell's Island—a record of the daily happenings of life in a prison, of brutalities and stupidities and abominations; a sordid record, from the pages of which gleam many fine human things, the sympathies and kindnesses and sacrifices of men thrust by society into the dark of prison because society was afraid of them.

The book begins with the author's imprisonment, and ends with his release or discharge from prison. It is the tale of his punishment, but it tells nothing of the "crime" that brought the punishment upon him.

It is a strange story, that of the circumstances that brought him to prison and an unprecedented proceeding in the United States, a prosecution for libelling an official of a foreign government.

Carlo de Fornaro came to America when he was a young man. He was born in Calcutta, British India, in 1871, of Swiss-Italian parents; and, determined to be an artist, he studied, first architecture in Zurich, then painting in Munich. But when he came to America he found a dearth of art, and when his talent for caricature was recognized, he turned to a newspaper career.

He began in Chicago, with the old *Times-Herald*, but the greatest part of his work was done in New York, on the *Herald*, the *Telegraph*, the *World* and the *Evening Sun*. In 1906 he went to Mexico to visit a friend—and he stayed three years.

Mexico first interested him—the people, the problems, the smouldering fire of revolution—and then absorbed him. Porfirio Diaz was President of Mexico, and approaching the end of his long reign of power. Fornaro, always a revolutionary, became interested in politics—a dangerous interest, especially for a radical opposed to the Diaz régime. Assassination and murder and life imprisonment in dungeons immured from the world were

commonplace methods used in that day to defeat the purposes of the opposition to the undermined Diaz dynasty.

But Fornaro, undeterred, went into politics. He chose the way best known to him; he organized a company and established a daily newspaper in Mexico City, of which he was Director. This was late in 1906. He continued with this newspaper for over two years, doing his share of fomenting the revolution that brought the Diaz government to its fall a few years later. Then, in 1909, he came back to New York, to continue the work in another form.

He wrote, and early in 1909 had published in New York, a book entitled "Diaz, Czar of Mexico." It was translated into Spanish, and thousands of copies were smuggled across the border into Mexico. It created an immediate sensation; it was forbidden and interdicted; copies of it were confiscated and destroyed; people selling it, distributing it, giving it away, or having it in their possession, were subject to punishment. But in the face of this it was widely distributed; it was passed from hand to hand, secretly, clandestinely; and the demand for it was so great, and the interest in it so intense, that in many cases where it was difficult to procure it, single copies were sold for as much as five dollars and ten dollars.

When the efforts to stop its distribution among the people of Mexico failed, other measures were tried. Agents of the Diaz government came to New York; they sent messages to Fornaro; they came finally to see him; and they offered him \$50,000 for the entire edition and to suppress all future editions. But they were true to the practices of the system that had so long exacted tribute from the people of Mexico. They knew the amount of money that would be paid to suppress Fornaro's book—and a proposition was made to Fornaro offering him \$50,000, and asking him to sign a receipt for \$150,000.

They failed. Fornaro told them the book was not for sale except for distribution; it would not be suppressed for any price.

It took these agents of the Diaz government some time to realize this fact. They could not believe there was a thing their money could not buy. But when they realized it they gave up and departed. And then other tactics were begun, and this time they were more effective.

Fornaro was indicted for criminal libel. This was a logical proceeding, and not unexpected. Agents of the Diaz government, acting ostensibly for Rafael Reyes Espindola, a Mexican Congressman, and Editor of the government paper *El Imparcial*, presented complaints to the Grand Jury. Grand Jury proceedings are secret, and Fornaro, of course, had no opportunity to present his case before that tribunal. It was set forth that in his book, "Diaz, Czar of Mexico," Carlo de Fornaro had criminally libeled Rafael Reyes Espindola, and Fornaro was duly indicted. One of the accusations brought against Espindola in the book was that as Editor he used the government paper with impunity to murder reputations.

Fornaro was arrested on April 23, 1909. He pleaded justification. He was admitted to bail in the sum of \$1,000. On June 21, 1909, a postponement of the trial was granted, to permit the defendant in support of his plea to secure, by Rogatory Letters, or Depositions, the testimony of witnesses in Mexico as to the truth of the allegations against Espindola contained in the book and complained against.

Some of the most prominent men in Mexico were among those Fornaro sought as witnesses to prove his cause. There were Francisco I. Madero, who led the revolution against Diaz, became President of Mexico and was killed when Victoriano Huerta assumed the Dictatorship of Mexico; F. Iglesias Calderon, the head of a political party, for thirty-five years a consistent opponent of the Diaz system, and the man who had furnished most of the material for Fornaro's book; Heriberto Barron, a member of the Mexican congress and a prominent journalist in Mexico City, and during the latter part of the Diaz régime an exile from Mexico; and others of equal prominence.

But the plan to secure this evidence failed. The witnesses in Mexico were "not allowed" to testify in Fornaro's favor; there was no opportunity to secure the testimony required by Fornaro, or, even if it had been secured, to get it out of Mexico; and his witnesses were threatened with punishment and retaliation if even by speaking the truth they gave aid to Fornaro.

What testimony was offered in his behalf from witnesses in Mexico was not allowed; his lawyer in Mexico City, Diodoro Battalla, a Mexican who had offered to take this case at the risk of his life, was not permitted to represent

him. But a representative of the District Attorney of New York was sent to Mexico, and he was permitted to represent the state of New York in such hearings as were had in Mexico City in an endeavor to secure the evidence necessary to establish Fornaro's guilt.

On October 27, 1909, Fornaro was put on trial. The result was inevitable. Fornaro was convicted. On November 9 he was sentenced to one year at hard labor in the city penitentiary on Blackwell's Island.

After his conviction, Fornaro was held for five weeks in the Tombs prison, first awaiting his sentence, and after his sentence, during a stay pending a decision on his application for a Certificate of Reasonable Doubt, which was denied; and on December 4, 1909, he was taken to the penitentiary on Blackwell's Island to begin serving his term.

Two weeks later, when the news of the sentence had reached Mexico, Rafael Reyes Espindola went to a bull fight. As soon as he was seen entering the stands there was a great outcry against him from the spectators—there were over twenty-five thousand of them; they were calling him "Assassin of reputations." They pelted him with missiles and drove him out of the bull ring in confusion and ignominy. The Mexican newspapers, commenting on the incident, called it "Brutal Justice."

On October 3, 1910, Fornaro was discharged. He had served ten months in prison, which was the full term of his sentence, except for two months off for good behavior, which is provided by the laws of New York.

Within a few weeks after Fornaro's discharge from prison, after the revolution against Diaz broke out in Mexico, on November 20, 1910, Fornaro was offered \$25,000 to leave the United States if there was an investigation of the manner in which evidence in his behalf was suppressed or kept from the court.

Fornaro refused it, as he refused the bribe for suppressing his book, and as he refused a pardon which he was told would be granted him unconditionally after his appeal to the Supreme Court had been lost. There never was any investigation into his case.

But the book that caused all the trouble went on. The first edition of "Diaz, Czar of Mexico" had been exhausted, and a second edition was printed. The

revolutionists in Mexico still say that this book, in conjunction with Francisco I. Madero's "The Presidential Succession in 1910," were the greatest influences in bringing about the fall of Porfirio Diaz.

A MODERN PURGATORY

THE TRIAL

It is the second day of my trial. The whole performance is tiresome and monotonous in the extreme. On one side—the side of the prosecution, the side against me—the case is legally perfect, on my side there is practically no defense; and surrounded as I am by powerful and subtle political influences, I have come to the conclusion that I have as much chance of success—or escape—as the proverbial snowball in Hades.

Considering my hopeless predicament and my helplessness, I am astonished at the sneering and insulting manner of the prosecuting attorney. Why this unseemly desire to swat as insignificant a gnat as I?^[1] During lunch at recess I hear that my victim and accuser is very much embarrassed and annoyed at the pertinent questions asked by the prosecutor and translated by an interpreter.

"Are you a picaroon?" queried the District Attorney.

"No," protested the blushing Mexican, "I am only a congressman."

Insults are sometimes the making of a man's reputation, but ridicule always kills, as my Mexican opponent confessed to me once in Mexico City, adding that he never paid the slightest attention to insults or libelous attacks of the Mexican press. In this case they made him change his mind and he was sent twice three thousand miles from Mexico to prosecute as libel that which he could not even read.

Finally the case is concluded and I am led through a maze into the Tombs prison to await the deliberation of the jury.

The keepers inquire as to the real meaning and equivalent in slang of the word "picaroon," and they seem disappointed at its commonplace meaning as compared to the phonetic redundancy of a word which promised so much. All seem quite certain the jury won't convict, but I am of a different opinion.

After waiting more than two hours I am brought back to court to hear the decision of the jury. I notice the foreman, a gray-haired, lean person with a long neck two sizes smaller than his collar. He is speaking in a low voice. I cannot hear what he says, but when he stops, and I see two Mexican friends and refugees come towards me with tears in their eyes, then I know my fate. They pat me on the back and say encouraging things as to the effect the publicity of this conviction will have on the cause of liberal Mexico. Newspapermen and friends surround me. An adverse verdict was expected; nevertheless I am somewhat dazed. They ask for a declaration, but adequate words fail me. I can only smile and say awkwardly: "It's all in the day's work. I believe what is to be, will be." And the keepers lead me through the bridge of sighs.

FOOTNOTE:

[1] In justice to the Prosecuting Attorney it must be added that over two years after the trial he apologized to the writer in the presence of Judge John J. Freschi, at the Press Club.

THE TOMBS PRISON

The next thing I remember is being "frisked," as they say in prison parlance, when the keeper looks through the prisoner's pockets for contraband.

They lead me to my cell and the iron doors clang behind me. A deep sigh of relief escapes me. The terrific mental strain of the last ten months, the long and sleepless nights of vigil, the knowledge of impending danger, have been blown away like an unhealthy mist, and I feel calm, secure, safely barred beyond the reach of the Mexican Czar's sicarii and thugs.

The necessary things for comfort are sent by kind friends, and I inspect my future abode.

The cell is spacious, enclosed on three sides by solid steel; air, light and ventilation come through the bars; two iron beds are attached to chains on one side and let down at night; there is running water for washing, drinking and sanitary purposes. An electric bulb and a small wooden bench complete the furniture.

The first thing in the morning I make the acquaintance of a prisoner who eagerly offers to become my guide and monitor.

We walk around the spacious corridor which surrounds the prison proper like an ellipse, and by a connecting gallery cuts it in half like number 8. Three tiers of steel cages go up to the ceiling and can be observed by standing close to the wall opposite our cells.

The men in the tiers above us walk around, some one way, others the opposite, like restless animals in captivity. Some young prisoners hang on to the bars and make faces at us downstairs, reminding us of monkeys in a gigantic cage.

Side by side with tough "mugs" and countenances worthy of the gallows, we notice the apparently refined and well-mannered aristocrats of crime,

dissipated looking boys, confidence men in pious demeanour, election repeaters, dandified "cadets" and "sissies." There are also sturdy looking laborers, a few black handers, a tramp or two, several negroes, two Chinamen.

A chauffeur with leggings, cap and automobile suit, tramps around with a dapper young pickpocket. They shout, laugh, talk, sing, whistle; and above all is heard the shuffling of several hundred feet walking, walking unceasingly.

A look upward to the superposed steel cages suggests their similarity to the circles in Dante's Inferno; the picture is completed by comparing my mentor to Virgil, but the sarcasm is lost on him, as he is only a very prosaic forger.

He informs me that the circle above contains the murderers, awaiting trial; higher up those on charges of grand larceny; and then follow the petty larceny men, and so on.

We who are on the ground floor have more walking space than those above us. The side walls have four rows of barred windows which give poor ventilation and poorer light. The air has a pungent, mouldy smell. The rumbling noise of the city traffic on the Centre Street side is heard plainly through the din in the prison.

My companion is a voluble and incessant gossip; his knowledge of jails, penitentiaries, and court procedure is amazing; he is a perfect walking prison encyclopedia. Nearly forty years old, he has passed twenty years behind the bars, either in Sing Sing, the Island Penitentiary or the Tombs. Very pale, clean shaven, rather plump, he speaks in a harsh whisper which gives a disagreeable impression of his uncanny knowledge; when he inquires or talks about the outside world he is like a child seeking knowledge about a strange, far-away land.

My next door neighbor is a southerner. He shot a man who cheated him out of all his money, and he spent several months in Sing Sing; now he has been brought back to the Tombs for retrial. Dark, with passionate eyes, black hair and sallow complexion, thin, calm, deliberate in manner and speech, he tells me of his case, and what led to his murderous assault, which he claims was done in self-defense. When I asked if he was resigned to

return to Sing Sing, he answered with gleaming eyes: "I'll kill myself before I'll go back to that hell hole."

I

As we are forbidden to keep knives or razors in our possession, those who require a daily shave climb to the circle above to the barber shop.

On the waiting line there is a familiar face, a young man who had been a waiter in a Broadway café. He has not lost his red cheeks and boyish manner while awaiting trial on the charge of seduction.

Those who can afford it and cannot eat the common prison fare have their meals ordered from outside restaurants. A young man with a capacious basket offers us our breakfast in the shape of bread, pies, coffee; and he also sells cigars, cigarettes, writing paper, stamps and various knickknacks.

About nine A. M. we are locked in and are allowed to buy newspapers from a boy. I scan the daily papers and notice that they are beginning to pay attention to this libel case. There are several editorials, one signed by William Randolph Hearst, whose championship in my case was a brave act, as it endangered his interests in Mexico. The mail is voluminous; scores of clippings come in from out of town papers. An unknown doctor in California sends a check, a laboring man in St. Louis sends a dollar bill, to help in the fight.

My first visitor appeared to me like a vision from a strange planet. I felt clumsy and impatient behind the cold and angular bars.

I am informed that two witnesses saw the president's brother and a prominent Mexican lawyer waiting for my verdict on the ground floor of the Criminal Court building. Those two lawyers were the king pins working the wires behind the scenes, and when the glad tidings were brought they hastened to telegraph it to Mexico.

After the visit we are let out of our cells for exercise, which takes place three times a day, morning, noon and evening.

All visitors are permitted to see the prisoners, but not twice in the same day. Keepers and matrons search the visitors, and I hear repeated complaints of the arrogant and rough behaviour of these men who seem to have no power of discrimination; they treat everybody on equal terms of brutality and incivility—those found guilty by the courts, those awaiting trial and the innocent visitors.

Newspapermen are almost daily visitors.

My friend and lawyer, K——, visits me every day in the barred chamber set apart for that purpose. As I descend to see him some one points out to me a special room wherein I recognize the banker Morse conferring with his lawyers. My friends on the *New York World* send an ambassador, in the person of a reporter, offering their good will and assistance. I am touched by their kindness and loyalty.

The days pass swiftly as if on wings while waiting for the sentence. My trial-lawyer, J——, visits me one evening and informs me that somebody has told the judge that I had boasted that I would get off with a fine. A strenuous denial is made, but the futility of the protest is apparent. The purpose of these underhand tactics is to prevent the imposition of a fine which could be paid by friends.

Criminal libel is a misdemeanor, and the limit or maximum sentence is one year in the penitentiary or a fine of \$500, or both.

The prosecuting lawyers hope, by the imposition of a prison sentence, to frighten me into accepting either a pardon or a commutation of the sentence, thus forcing me to accept their favors and preventing further investigation into certain proceedings.

A suggestion is made to enter a protest with my ambassador. Such a procedure would empower the judge to offer me the choice between going back to Europe or serving one year in the penitentiary. The Mexican government would prefer to get rid of my agitation in this country and does not relish the idea of assisting the publicity of a willing martyr.

My suspicion of these tactics is aroused when I learn of the case of a young cockney valet who stole from his employer, and who was offered the alternative, when the judge sentenced him, of going back to England or serving five years in Sing Sing. The young valet took great pains to inform me of his case and the advantage to be derived from accepting the lesser of two evils. I mused over the incident, and wondered if the valet's case was not a gentle hint emanating from the Machiavellian brains interested in my case. The trial lawyer, J——, suggested the advisability of appealing to the governor for clemency in case of loss of the appeal. A protest to the ambassador was also proposed. I declined both suggestions.

II

I have become acquainted with a prisoner a few doors from my cell, next to the shower baths. Small of stature, almost a boy, deathly pale, dark, with strong features, this young English pickpocket is a new type in my limited experience with criminals.

Every afternoon we sit together at a five o'clock tea in his model cell. The walls are covered with half-tone pictures of famous stage beauties. He offers me the place of honor, which is an old, rickety, but comfortable armchair which belonged to Harry Thaw.

The bed, the bench, everything, is decorated with paper, cut out with infinite pains. The tea is excellent and there are also condensed milk, Huntley & Palmer's biscuits, butter and orange marmalade. Mine host seldom talks to prisoners; he says the place is filled with stool pigeons. When asked if he does not suspect me, he smiles and remarks that in his profession a deep and varied familiarity with human nature is necessary, as well as a cool head, an impassive mask, and great dexterity with hands and fingers.

Very good-naturedly he answers my questions as to his early life and the influences of which brought him to steal; he tells me also of his philosophy of life. His father and mother were both thieves, and he was taught to steal as soon as he could walk. The whole of Europe was the field of his operations.

Soon after he came to New York he was arrested, and although the detectives could not find any stolen goods on him, nevertheless he was sentenced to seven years in Sing Sing on his past criminal record, which was sent over by Scotland Yard.

Considering this man's record and nationality, the question comes to mind as to why he was not sent back to England, instead of burdening the taxpayers of the state of New York with his maintenance for seven years.

III

In the evening I was interrupted in my conversation with a confidence man by the entrance of Lupo and some of his black hand confederates. Standing against the wall while being searched he refused to answer any questions either in English or in Italian.

A dark mustache aggravated his villainous look, while his black, restless eyes surveyed his surroundings. One of his cronies muttered something, but he only growled, lifting the corners of his mouth and baring his teeth in angry contempt. Verily he gave the impression of a wolf caught in a trap, but still defiant and ferocious.

We stop at the cell of a poor German who is locked up on the charge of attempted suicide. He weeps disconsolately, like a child, the tears running down his haggard and gentle face. His clothes and linen are poor and as dirty as his face; his hair is unkempt. He wrings his hands in despair and moans: "Why did they not let me die in peace?" He was out of a job, friendless and penniless in a foreign country, and when he tried to end his misery they put him in jail. It seems a hopeless task to try and cheer him up.

A harmless looking old man with white hair and beard attracts every one's attention by the ferocity of his deed. He has killed his own daughter, a school teacher, as she was coming out of school surrounded by her young pupils. Nobody seems to know the reason for his act. The judge has just sentenced him to the electric chair, and he appears the least concerned of all as they search his cell for hidden weapons and put an extra guard to watch him for the night. An Italian priest hears his confession in his cell. When asked the reason for his inconceivable act he answers slowly that he prefers

his daughter's death to her life as a prostitute. "My life is in the hands of God," he whispers, as he folds his hands in prayer. In the morning he will be taken to Sing Sing.

IV

The trusties who clean up the floor and the cells and make up our beds are mostly short term prisoners from the penitentiary. In spite of his stripes, one of them looks like a Greek athlete; his dark, curly hair, powerful chin, strong nose, the muscles showing through the striped shirt at the neck and arms, excite the respect and admiration of his fellow prisoners.

My trusty is a weak-faced individual, who is always fawning for a tip with which to gamble with his companions upstairs. His wife had him arrested for non-support. Although quite competent to make a living and to support his wife and three children, he confesses himself unable to resist the lure of the games of chance. Imprisonment has not reformed him in the least; on the contrary, indeed, for now he can gamble to his heart's content!

The detective who arrested me on a warrant asks to speak to me, and gives as a pretext his friendship for me. He feels neither rebuked nor offended when he is told that I am careful to choose my friends among my equals. Quite modestly he admits being only a petty larceny detective, but he is now anxious to discover who and what is behind the political game played in my case. He leaves in disgust when advised to adopt Sherlock Holmes's method of deduction.

V

Next morning, handcuffed to a young prisoner and accompanied by a score of men, I am taken to a pen. The place cannot be described in decent writing, but I can safely assert that a more filthy, disgusting place does not exist in New York. The stench is so sickening that I suffer the rest of the day from a splitting headache.

After an hour's wait I am brought into the presence of a kindly faced probationary officer who asks me for addresses of friends who might write to the judge, and inquires for certain facts concerning my case which did

not come out during my trial. She also begs me to write a letter giving these facts, so that she can show it to the judge before sentence is passed on me. The result is negative, as the judge has already made up his mind about my case.

The young man who was handcuffed to my wrist goes into court to get his sentence. He returns, pale, trembling, almost fainting, and can only whisper hoarsely that he is going to state's prison in the morning for four years.

Another companion in misery is an Italian waiting for trial. He is indignant, even furious, at his treatment by the District Attorney. His case is a record breaker; he has been brought up for the two hundredth time without being tried. This is done to wear him out and force him to plead guilty.

A lean, dark-haired, young man with unpleasant features, suspected of having murdered a pal, tells a story of a third degree at headquarters.

After two days and nights, passed in a cell without food and water, he says he was brought in to the presence of several masked detectives. Stripped to his bare skin, he was forced to stand on a metal rack with burning hot points until he attempted to jump off, when the whole gang of sleuths assaulted him, beat and kicked him, and forced him back.

Without rest or halt, questions were yelled at him in quick succession; when the answers did not come fast enough, they battered him unmercifully with their fists; when the answers were unsatisfactory, the vilest and foulest of insults were shouted at him, tauntingly, sneeringly, to arouse his anger and loosen his tongue.

No opportunity was given him to concentrate his mind. He was racked by a gnawing hunger, a parched throat, a delirious thirst; by painful stinging wounds of cut lips, bleeding teeth, two half closed black eyes and a constant hopping on the radiator to keep the soles of his feet from burning.

Then they tempted him by bringing a table covered with luscious, steaming food, sparkling drinks and expensive cigars. Like Tantalus, he was intercepted and derided when he attempted to partake of the food or the drink. Meanwhile the detectives ate and drank with relish almost under his nose; they drank to his health, and blew into his face the fragrant smoke of their cigars.

They continued this torture for several hours, until his body and mind could bear the strain no longer; and then he fell to the floor in a dead faint.

VI

At last I am told to appear before the judge who is to pass sentence on me. They handcuff me to a negro and we climb into the "Black Maria," an omnibus with facing seats, tightly locked, and with small holes for ventilation. A mob collects in the streets to witness our humiliation. The room in the court house is crowded with people. Several men are sentenced, one after another, in rotation. I espy some of my loyal friends there; they look pale and uncomfortable.

My name is called. I am freed of my handcuffs and I stand at the bar, facing the judge.

Instead of listening to the learned judge deliver his wise sentence, I am watching intently a lonesome fly buzzing in a vibrating aureole frantically round the top of his head. I am wondering what the judge had for luncheon. My absurd cogitations are suddenly interrupted by a phrase spoken in a louder tone than the rest of the sentence.

" ... Fornaro, that you be imprisoned for one year at hard labor in the penitentiary...." The fly stopped buzzing as the judge lifted his head to look at me.

My lawyer, K——, runs out. He is to try to get a certificate of reasonable doubt, which acts as a stay of sentence; otherwise I would be taken early in the morning to the penitentiary.

While these proceedings are going on, I am temporarily transferred to the old prison, which is full of crawling parasites. Luckily, however, in a few hours I am returned to my cell in the Tombs to wait until the certificate is either granted or denied. But the certificate is refused, of course, as I knew it would be, and as I think my lawyer knew it would be. It was a forlorn hope.

In the evening a letter is brought to me and I am asked to sign for it. It is written in Spanish and is an attack on Vice-President Corral of Mexico, who is accused of having furnished me with money to publish "Diaz, Czar of Mexico," and then of leaving me in the lurch. This piece of Spanish fiction is inspired by a bitter enemy of Corral in the hope of eliminating Corral as a Vice-Presidential candidate. But I refuse to sign the letter.

Another fairy tale comes directly from the District Attorney's office; I am told that they know that President Cabrera of Guatemala, a bitter enemy of Porfirio Diaz, has furnished me with \$5,000 to publish my libelous pamphlet.

A friend arrives from Mexico and brings an oral message from Ramon Corral, who inquires if I have empowered an agent to negotiate the sale of my book for \$50,000, as he doubts the statement. A letter is written advising the Vice-President that he is right in his surmise, and that the alleged agent is only trying to get money under false pretences.

A labor leader visits me offering financial help in my fight. As money will not be needed in the penitentiary, I suggest that an investigation might be started in Congress into the persecutions of Mexican liberals by American officials in this country. The promise is made and fulfilled seven months later.

VII

Two sisters of mercy come to see the prisoners during the hours of exercise; they distribute fruit, and walk freely and unconcerned among the men, who seem to think a great deal of them. One of them has kindly and intelligent looking eyes behind large, gold-rimmed spectacles, and speaks in the well modulated and authoritative voice of the woman of the world. Unlike other prison missionaries, they do not make religious propaganda by distributing tracts and pamphlets; their attitude is one of charity, humility and usefulness.

Protestant clergymen, rabbis, and even a theosophist, come to save us in spite of ourselves. Their attitude is one of aggressive virtue and militant religious contention—or contagion. A certain missionary is very indignant

because I refuse to look at his tracts or listen to his childish twaddle; and finally becomes so arrogant and insulting that I have to order him away from my cell door.

THE PENITENTIARY

"As long as a nation harbors a body of men authorized to inflict punishment, as long as there are prisons in which such a body can carry out these punishments, that nation cannot call itself civilized."

*Message written on his prison wall,
by Francisco Ferrer.*

It was a clear December morning when, from the little boat which carried me across the river, I spied the outline of the penitentiary squatting on the lower end of Blackwell's Island. It was my first view of it and the impression made on my mind was so ominous and sinister that my heart almost sank within me as I entered the fateful gates.

"Hey, there! Where do you t'ink you are? Take dem gloves off!" shouted a tough, strong voice as I stood waiting in front of the office window, recounting my pedigree and giving up my private belongings for safe keeping. In the old prison, I found six new prisoners waiting in line.

Our hair was clipped by a convict barber, and we were ordered to divest ourselves of our civilian clothes and take a shower bath. While we were trying to dry ourselves with two small hand towels, prison underwear and striped suits were thrown at our feet.

The trousers were decidedly too long, the coat, and the rag—unjustly named a vest—both too short; a cap which came down to my eyebrows made up this uniform of degradation and infamy. Harlequin's costume never looked more ridiculous than our own, which was mended, patched and repatched from long use by generations of long-suffering convicts.

The prison authorities, I suppose, are to be commended for their thrift; but I cannot help feeling that by putting on those frayed and wornout caricatures of uniforms we are endangering our health.

In the photographer's house behind the shower baths we are "mugged"; our Bertillon measurements are taken, even to "beauty spots" and pimples, by a

red-haired, freckled-faced young man. A sign twelve inches long, black, with white numerals, is hung round my neck over a black cotton coat, and I am told to look pleasant until the camera has focussed my profile and full face.

Sitting on benches, waiting for their turn, are a dozen prisoners. They are all old, white-haired, naked and shivering; old offenders, recidivists, tramps, bums, drunken louts; lean, pale, bruised, with anemic, unhealthy skins, red noses, fishy eyes, bloated faces, large hands, knotty, ungainly feet, purple with the cold.

A very old man attracts my attention by his immobility, his general paleness, and his extraordinary gauntness, which shows the perfect outline of his muscles, and reminds me of the statue representing San Bartolommeo in the cathedral of Milan, holding his whole skin over his arm like a bath robe.

Squint-eyed and almost blind, this old man, of more than the allotted span of seventy years, seems unable to recollect his name, occupation or social status.

"A bum, I guess," remarks the keeper.

It appears that he is deaf, and his neighbour nudges him with an elbow and shouts in his ear:

"Say yes!"

"Yes, sir!" hastily answers the old man.

These derelicts of society are going to the workhouse on Monday.

Later we are ordered to clean and wash the small glass panes in the windows of the main prison. Trusties in smart, new, striped clothes, with creased pants and caps, rushed by eyeing us with curiosity. "Whatcheh in fer?" "What did the judge hand yeh?" are the leading whispered queries.

A pungent, musty, sickening smell pervades the old prison, which is barely lighted by a dismal and gray reflection filtering through the small windows.

An inscription on the wall shows the date of construction to be 1864. The cell where Boss Tweed died is pointed out to me.

Suddenly the electric lights are switched on and a bell starts ringing in a loud, metallic, persistent note, not unlike the subway starting bells. A heavy, automatic, dull noise in the distance announces the approaching footsteps of the convicts returning from work. In measured step, each gang followed by its keeper, more than a thousand men march past the head keeper's desk.

All the varieties of ages, figures, physiognomies, expressions, are illustrated to my astonished eyes. Young men with red cheeks and simple faces; strong men with bullet heads, broad shouldered, surly or impassive; fat men with wabbling bellies and cheerful faces; old men bent and hoary with age; slow and listless young men with effeminate gestures; a few cripples on sticks or crutches, and wobbling along behind the lines, a paralytic led by a companion. They all file by, stamping their feet in German military fashion.

At moments the order is given to slow up or stop, and the convicts continue to move the legs in rhythmic step, their bodies almost touching, and giving the appearance of an enormous centipede dancing a gruesome, macabre saraband.

Finely shaped heads are rare; it looks as if an almighty sculptor had left his handiwork unfinished, or purposely kept it in rude outline. Foreheads are either too bulging or too retreating, eyes too sunken or too protruding, noses too large or too small, mouths too sensual or too cruel, chins too powerful or too weak.

Smiling or frowning, aggressive or indifferent, surly or pleasant, all the different expressions and gestures are sketched out in violent chiaroscuro, and compose a cartoon worthy of a Frans Hals or a Michelangelo.

My eyes absorb the kaleidoscopic, ignoble, unbelievable pageant. As an artist I am fascinated, hypnotized by this fantastic procession of human zebras, slashed with broad stripes of gray and black, with the four prison tiers as a background, and the dark blue uniforms and gold buttons of the keepers adding a touch of color.

As a human being I am shocked and repelled by this grotesque, degrading parade.

Is this really the Inferno or only the last Judgment, I ask myself?

"Get in line, you loafer!" shouts a red-faced keeper, shaking his stick at me. Thus I am awakened from my dreams.

I

I am locked in the old prison for the night—my first night in the penitentiary.

A bed made of an iron frame with coarse canvas stretched across it, two cheap cotton blankets, a straw pillow, a large covered pail and a drinking cup, complete the total of my furniture. It is the simple life with a vengeance. The bed takes up the whole length of the cell; there is no room for walking except sideways from the bucket to the cell door. Sitting in a lateral position on the couch, with my back touching the wall, I can place my legs on the opposite wall only in a bended posture.

A tier man comes to the cell shouting "Water." While pouring it into my cup from a large can I peer at his face through the bars. His pale features, beaked nose, cruel mouth and yellow eyes make him seem like some tropical carrion-eating bird. I am so fascinated by his depraved and satanic look that I allow water from the cup to drop onto the floor.

He utters curses, "not loud, but deep," and returns to mop the floor.

I try to interest myself in an old magazine, but my mind seems unable to concentrate in a continued effort; I read, but my imagination wanders away in an interminable circle without beginning or end.

The cold is intense; the blankets, thin and gray, afford no protection. My whole body is shivering and shaking uncontrollably as if in high fever, my teeth rattle like castanets accompanying a Spanish fandango. I light a cigar and watch the smoke curl slowly, lazily across the cell until it appears like a veil between the ceiling and the floor and finally settles over my couch like a pale, transparent shroud.

Evidently there is no ventilation, but I continue to puff away, hoping to fumigate and kill the fetid odor in the cell.

Everything is still except for the occasional moaning of a sick man. Finally the electric light at the foot of the bed is extinguished, and I am left in the dark.

I turn into bed with all my clothes, including cap and shoes, trusting in this manner to warm myself and in the hope of forgetting my troubles in blissful sleep.

But there seems to be no rest for me.

As soon as a little heat radiates from my body, scores of bedbugs are attracted and start a vicious, incessant campaign. When I am deceived into sleep by a lessening of their attacks, I am awakened by the cold air under the canvas, which freezes my back and forces me to shift my position.

Horrible nightmares shake me with a start as soon as I am lulled into slumber. My throat is parched as if sand had been my last meal, and I pick up the tin cup to get a drink; to my intense despair the rusty, filthy cup has a leak, and all the water has trickled to the floor.

I dream that the cell, with its massive walls reeking with stench and humidity, is growing smaller, closing upon me like an accordeon, until the cell door is as small as a keyhole from which I get the last gasp of air; then instead of air, an endless cool, refreshing flow of water runs down my throat. But, unluckily, my intense thirst awakens me and I start toward the cell door calling for water in a faint, hoarse whisper.

A keeper silences me with a gruff, impatient voice: "Where in hell do you think I can get it?"

And I can hear the water dripping lustily from a faucet into a full barrel on the ground floor!

I try philosophically to force my thoughts into past and pleasant memories, but the present distress is so tyrannical and overpowering that all the physical, moral and intellectual suffering of the world seems to be centered within the few square feet of this dungeon. My *via crucis* has begun. I reflect with terror that my mind may not withstand the strain of uninterrupted agony, and suicide appears as an easy solution.

The absurdity of the impulse is evident, for my death in this filthy cell, like a rat in a hole, would delight those responsible for my presence here; and furthermore it would shock and sadden those dearest to me.

What is all my fortitude and philosophy worth if it cannot steady and concentrate my will at the most crucial, heart racking and desperate moment of my life?

Why should my trained mind crumble like a match box and be destroyed under physical torture, mental distress and moral humiliation?

Is not suffering the greatest of all tests, necessary, purifying and regenerating? Why not wait patiently and courageously for the day of reckoning, worthy of the gods on Olympus?

I count my heart-beats to get an idea of the passing of time. The minutes seem to have frozen on the fountain of time; they drip laboriously as if each and every one of them represented eons of memories and experiences; as if each was attempting to demonstrate that in the accounting of eternity they were as significant as centuries. In a supreme physical effort of my will I grip the bars and grit my teeth to stop the impending and foolish disintegration of my mind. The waves of despair, the racking pain, the insane delirium are slowly beaten back into submission, like a defeated army. The imagination is disciplined, the will has thrown the switch and illuminated the real inward self, as I stand watching, through the steel bars, the windows on the opposite wall. I feel calm, serene and strong.

Of a sudden, as if to illustrate my state of mind, out of the gray, blue mist, a large, luminous, rose disk slowly arises beyond the opening.

The sun, the glorious sun! Silently it looms up, magnificent through the haze, like a mirage announcing the advent of better things and more hopeful days.

The same sun I had seen arise in India, Egypt, Italy, Mexico, in many frames of classical and tropical beauty; but never has it seemed to me so divine, so perfect, so precious as on that awful morning.

II

At 6 A. M. a quick, metallic carol announces a new day—and a Sunday. With a clanking noise and in swift succession the cell doors are unlocked and on every tier the whole line of convicts walks along the galleries and down to the ground floor, to a long iron sink, divided into small dirty tubs that are filled with murky water.

Our ablutions are performed in rapid military style; those not strong or nimble enough to get near the crowded trough, before the command, "Back out," is shouted, have to return to their cells half-washed or dirty. Sometimes a laggard insists on finishing his washing; and then an angry voice assails him rudely: "Come on, you God damn bum, didn't yeh hear me? Back out!" And a guard "fans" him over the back with a club, pushing and shoving him all the way to the galleries, as a reminder to quicker obedience.

Back at the cells, every man stands at attention behind the door with hands on the bars, waiting for the keeper to count the men until he orders, "Close," and with a deafening noise every iron door bangs in unison. Then after a short rest the bell rings for breakfast, and we march into the mess hall.

What a depressing, fantastic assemblage there unfolded itself before my eyes! Row after row of cropped gray heads, the black and gray stripes, moving unceasingly in a rippling pattern, giving the semblance of an enormous, ghostly, shivering tiger skin. The faint light from the barred windows forces the tonality to a low pitch and adds to the vagueness, uneasiness and consternation of my mind.

The benches and narrow tables seat fifteen to twenty in a row; and the two mess halls over a thousand convicts.

Breakfast is served in dented low pans, filled with potato and corn beef hash, alternating every other day with oatmeal and syrup. The rusty tin cups are half filled with an unsweetened, brownish, transparent concoction called coffee, which the convicts long ago nicknamed "bootleg."

But the bread, made of wheat and cornmeal, is very good. The raising of the hand is the signal for an additional slice of bread, which is distributed by a convict, and when it reaches you it has usually been handled by ten or fifteen different, not to say unclean, hands.

The men eat voraciously and in great haste, coughing, chewing, smacking their lips; grunting and snorting like pigs with their snouts in the trough. My poor appetite is not improved by their disconcerting exhibition, and my portion is quickly swallowed by my neighbours.

On both sides of the hall we are watched by keepers standing against the wall, or perched on high stools, swinging their sticks.

On my right there is a goodnatured-looking keeper with a bullet head and sleepy eyes; on the other hand a small, wiry, thin-faced, long-nosed, white-mustached keeper, with wicked eagle eyes, who uses not only the foulest of language, but also his stick, on the slightest provocation.

After the "feed" comes the bucket parade. Each man carries his own bucket into the yard behind the prison building, facing the Brooklyn side. The Queensboro bridge on the north, with two feet on the island uniting Brooklyn and New York, appears gigantic on the horizon.

The air is cold, crisp, exhilarating, after the oppressive night. The whole prison is marching line after line to a well-shaped opening, wherein the dirty water and excreta are dumped in succession by the men, while an old convict belabors its interior with a long pole to prevent the opening being clogged. The clear morning air cannot blow away the overpowering stench of a thousand dirty buckets, intensified by the acrid smell of chloride of lime which is thrown into the hastily washed pails.

III

The resting day without reading or occupation or exercise of any sort is agonizing; intolerable in the extreme.

From four o'clock on Saturday afternoon until Monday morning at eight, except for the short freedom for meals, we are locked up in our cells. There is no exercise, no work, for almost forty hours. Most of the cases of insanity in prison are due to this enforced inaction, and the accumulation of foul air in the cells. Even the keepers who have to inspect the top tiers run swiftly along the galleries with their noses closed tight.

Hoping to break up this dreadful monotony, I attend the Catholic mass in the morning and the Protestant service in the afternoon. The one delightful and exquisite balm to our jaded minds is the music of the organs, which accompanies the singing of hymns by convicts.

The chapel on the second floor is crowded with prisoners; and on one side there are a few women, with large poke bonnets covering their faces to prevent their flirting with the men.

A convict informs me that I would have been punished "against the wall" if I had been caught going to the two services. At the slightest infraction of the rules, I learn, the offender is dragged towards the main prison and kept standing, facing the wall, sometimes all day without food or water—and there is no way of finding out what and how many rules there are.

On week days the warden stops to inquire and punishes according to the state of his mind or his stomach, or perhaps the weather.

The dinner consists of a soup of beans, carrots, lentils or potatoes; meat with vegetables, or cornbeef and cabbage; and "bootleg." For supper there is unsweetened tea, bologna sausage or red gelatine with bread.

The anticipation of another night like the last one fills my mind with uneasiness and dread and fright. The memory of it is burned forever into my consciousness. But fortunately it was not so full of terror. It was bad; but no other night ever could be as horrible as the first night I spent in that place.

IV

In the morning we are ordered into the new section of the prison. The old bums go to the workhouse, and we await our turn to be placed in the shops, according to our sentences and our work or profession. The distribution of labor among us is strange and mysterious. A butcher, for instance, is sent to work in the stone quarry, a smuggler into the kitchen gang, a lawyer in the "skin gang," a "sissy" into the coal gang, a waiter into the garden; a burglar is sent to make socks, and I am sent into the tailor shop.

In this simple distribution of labor we shall learn many things which will be highly useful and remunerative when we go out into the world again.

I am finally alone in my new cell, which is spacious, clean, airy. I can walk seven or eight paces up and down, like an animal in a cage.

The steel beds are chained to the walls; instead of the filthy canvas, a steel wire is stretched across the frame, but there is no mattress or sheets as there were in the Tombs. There is also a covered bucket in the lower corner, and a tin cup. The bars are strong, but nevertheless plenty of air and light come in from the large windows opposite our cells. Two small hand towels and a piece of scrubbing soap are added to our simple belongings.

The number of my cell is 23, the last one in our row, and on the second tier, which contains men who work in the tailor shop. The shops stand together, in a separate building between the prison and the river, on the Brooklyn side. The shops where they make brushes, shoes, beds, and the tailor and repair shops, are under one roof, and under the control of a contractor. In the shops all kinds of work are performed: repairing, cutting and making clothes for outgoing prisoners; there are machines turning out underwear and socks; mattresses are made, stuffed and sewn up. At one end of the large room a keeper sits on a platform, while another surveys it from the other end.

Although the prisoners are forbidden to talk, nevertheless they communicate as freely as if the rule did not exist. When I attempted to ask my neighbour a question, he hushed me up with a hissing noise—but he answered my question. His lips did not move, but I could hear him talk in a faint murmur which would have been inaudible ten paces away.

It is very hard at first to follow this new method of carrying on conversation, as in everyday life one is used to watching a man's eyes and lips while listening to his voice. But after a while the hearing becomes used to it and is trained to listen and catch these slightest sounds, which escape the untrained ear of the keeper.

The convicts never glance into the speaker's face or at his lips; they look straight ahead and talk in the manner of ventriloquists, but instead of using a loud and clear tone they whisper in a low murmur. Men who have passed years in jail can always be recognized by their monotonous, whispering manner and their almost expressionless faces. This form of speech is necessary in order to avoid punishment.

Under the pretext of helping me, a young convict comes over to my side of the shop. He shows me the intricate workings of the machine which turns out the uncut cloth for the prisoners. Later it is cut and fashioned into prison underwear.

On top of the machine the spools feed the thread incessantly. Care has to be taken not to use "sabotage" methods, as punishment is meted out unmercifully by the contractor, who seems to have as much power over us as the warden.

My other companion is a young Russian sailor, healthy looking, fair and quite peaceful when let alone. He warns me that my anxious instructor is a "stool pigeon," who proves his status by giving me very detailed instructions as to how to manage to escape successfully.

I ask why he has not put his own methods into practice; and he gives as an excuse that he is going to be released in a few days.

Then he furnishes me with paper, pencil, and soap; and he even offers to send out letters for me. When I answer that I have no letters to write he recites an endless list of rules, and tells me how to evade them, and how to keep the friendship of the keepers.

He reveals to my astonished ears the underground system of communication with the outer world. With money and friends a convict can get all the contraband he desires: dope, newspapers, matches, letters—coming in and going out—whiskey, writing paper and pens, stamps, delicacies, tobacco. My mentor has passed a year in the penitentiary for the offense of "repeating," or of voting many times on election day. The gang leader who paid him for his work is looking out for him from his Brooklyn haunts.

Facing us there is a long table at which old convicts are sitting, without making a pretence at working. As long as they keep quiet nobody notices them. Some of them look over seventy years old; sad-faced, pallid, curved, almost venerable in their old age. They are mostly old sneak thieves and pickpockets, the wrecks and failures of their profession. They sit like graven images, silently, patiently, hour after hour, year in and year out, until some fine day one of them will be found rigid in his cell, and then four

striped convicts and a keeper acting as a pallbearer will carry him away in a large black coffin to the morgue.

To-day for the first time since my incarceration I beheld the reflection of my face in a mirror. The sight was humiliating and shocking in the extreme. My keen sense of caricature lowered my well fed conceit half way down the ladder of vanity.

Then I consoled myself by thinking of all the good-looking, impressive, well-groomed men friends, enemies and acquaintances of mine; and I tried to imagine them with clipped hair, togged out in ill-fitting, patched, striped garments and cap; collarless and tieless; with a week's growth of beard on their cheeks—and the comparison made me laugh and cheered me up considerably.

The Deputy Warden comes in on his daily visit. His approach has been telegraphed in some mysterious manner and the whole shop takes on a lively bustling appearance. Second in rank as an officer of the penitentiary, the "Dep," a tall, good-looking man, strides into the room like a Prussian officer. He is not disliked by the convicts, as he seems just in his dealings with them.

Going back from work through the yards, a fat German convict who had been working in the brush shops, broke away from the line and, before he could be stopped, jumped into the river in an attempt to drown himself. A few shots were fired. A negro and two white convicts jumped in after him, and with the help of a keeper who patrols the island in a row boat, they fished him out. They laid him flat on the ground and worked to revive him.

His fat belly stuck out like a barrel, his face was livid, his lips purple. Finally he opened his eyes, and sputtered and murmured: "Let me die! Let me die!" "Shut up, you s——!" yelled an angry keeper, and he was dragged feet first to the hospital.

V

My skin has been itching for two days, and I attribute it to the coarse underwear and ill-fitting clothes. In my cell after the day's work I make a careful inspection and am quite frightened to find my whole body covered

with red spots. Evidently I have caught some skin disease from those tattered old rags which have been worn by generations of unclean and diseased convicts. The thought of having to pass a year in a prison hospital is anything but cheerful.

I turn my thoughts to other things by trying to read a novel from the prison library. A slip had been left in the cell to be filled out with the name of any book that I might desire to read. In my innocence I put down "Shakespeare's plays or the Bible." A novel entitled "Truthful Jane" was left in their stead.

But I cannot read. And so I start instead to inspect my surroundings. The new cells compare very favorably with the cells of the old prison, which are really holes in the wall and reeking with the mysterious unwholesome smell of rat holes and graveyards.

At one end of the cell opposite the door are two small openings for ventilation; one at the top on the right hand side and the other at the bottom on the left. In trying to find out the depth and direction of the holes I plunge my arm into the opening, and my hand feels a square object. It is a small bible! I am delighted by the discovery. On the fly leaf there is some handwriting in pencil in a careful, intelligent hand: "To my successor: May this book while away your long and weary hours and make you forget your troubles and worries as it did to me. Don't forget to replace the book where you found it when you leave."

A tier man comes to the cells with a light for those who care to smoke. He is a pleasant-faced individual, quite polite and ready to do any small services within his limited powers. I find out that he has been condemned to a year for keeping back mail in the post office. The tier man who had made such a disagreeable impression on me that first night in the old prison, is a church thief.

My battered and rusty cup has been filled up with water. I am afraid to drink from it, as it might have been used by some consumptive or syphilitic convict. Necessity being a great inventor, I press some paper to the rim of the cup to prevent my lips from touching it.

As I walk up and down the cell I am always unconsciously trying to put my cold hands in my trousers pockets, only to discover over and over again that

there are no pockets there, only one on the inside of the coat.

The clipping of my hair so close to the skin at the height of the cold season has brought a cold in the head. I have no handkerchief, and shall have to wait a whole month until they allow me to write to have a few sent by mail.

These apparent trifles, and all the nagging, idiotic rules, invented by senile commissions and wardens to torment the helpless captives of society, are always magnified by men brooding in the solitude of cells. But I have made up my mind not to permit anything to ruffle my equanimity, so I pick up some letters from friends and read and reread their cheering contents. If people who write to their unfortunate friends in prison only guessed how they yearned to receive those familiar scrawls, and how they are treasured and memorized, they would write oftener.

A night keeper walks by like a shadow, flashing a bull's eye lamp into the cells to catch us in any infringements of the rules.

There is only one rule tacked up on the walls, but the other 999 we have to guess or learn from fellow convicts. The list of rules which we have to find out at our own expense or from wiser convicts would fill up a small volume.

As there are no written rules, and nobody informs us of all the unwritten rules on our entrance here, as is done in Sing Sing, the thought comes to my mind that this apparent forgetfulness is really meant to give the warden and the keepers an unchallenged power of persecution over suspected and unruly convicts.

Most of the punishments inflicted by the warden are for infractions of rules which the newcomers are in entire ignorance of, and these infractions occur no matter how obedient and willing the new arrivals may be to keep within bounds of the prison laws. The foreigners, Italians, Slavs and Teutons, all those who do not know English and who cannot learn the rules from their fellow prisoners, are the greatest sufferers from this carelessness, whether it is intentional or otherwise.

VI

After breakfast I was watching from my cell some sparrows that had nested inside the prison walls, high up on top of the large windows facing the tiers. I dropped some bread crumbs on the floor of the gallery, and some on my cell floor, to induce the little birds to come in.

At first they were afraid to trust themselves inside the bars of my cell; but they kept fluttering about nervously outside, keeping up an incessant twitter and chatter that sounded quite musical to my ears.

Finally they grew bolder, and recklessly they flew into my cell, first peeping at me, with bended heads as if they would ask: "Are we really safe here from capture or treachery of any kind?" And hastily picking up the crumbs, they flew out to inform their companions of the god-send of fat bread crumbs in a large, barred room, instead of the poor hunting in the prison courtyard.

Then they came back fearlessly, and thanked me with quick little nods of their pretty heads, and sidelong trusting looks from their black beads of eyes; with low, graceful courtesies and a cheerful piping song.

And then one morning a keeper who had been attracted by the noise, shooed the birds away and swore in a gruff voice, warning me that it was against the rules to throw crumbs on the floor, as well as to keep bread in my pockets or in my cell.

Once a week the prisoners are privileged to wait in line to see the warden, to protest against any injustice, to recount a grievance, or to ask a favor.

Like a dozen or more I stood waiting for the quick-lunch justice of the Czar of the penitentiary. After a while he appeared, accompanied by a tall young secretary who jotted down our names and the details of the business on hand. Walking slowly, with bent shoulders, hands behind his back, the warden seemed to be about seventy-five years old. His face was furrowed with irregular, meaningless wrinkles, and he had small shifty eyes, with white hair and a white beard. He had a habit of staring at the convict who was speaking to him, and suddenly bending one ear toward the speaker as if he were partially deaf.

The warden's answers came quickly, in the jerky, high pitched voice of the Sistine Chapel cantors, and often breaking under the strain of anger. A convict suffering from locomotor ataxia, leaning on a walking stick, hanging on to a companion, begged for permission to get a pair of crutches ... his mother would get them for him.

"What for?" queried the warden, innocently.

"Because I can't walk with this stick," answered the convict.

"Then why don't you get a cab!" said the warden. And he snickered and then coarsely guffawed.

Again he furiously upbraided another petitioner.

"Where do you think you are? At the Waldorf-Astoria? Next thing they'll be asking me to get them flowers, candy and theatre tickets. I am here to see that you are punished. See?"

After having thus vented his spleen he uttered some alleged witticism at the expense of the helpless convict, and showed a great appreciation of his own humor, uncovering a row of yellow, brown, half-decayed teeth in a sneering grin most unpleasant to behold.

My turn came, and I asked for an extra blanket, as the cold was intense and the metal springs of the bed offered no protection against it. This it seemed was also against the rules. When I suggested that as he was the warden he could make and unmake the rules, he did not answer, but asked irrelevantly how I liked his hotel?

I answered that it was preferable to the castle of San Juan de Ulloa in Vera Cruz.

He looked puzzled, then he smiled as if he saw the point.

"We'll take care of you," he repeated twice, waving a thin, wrinkled, old hand.

VII

At lunch time the sick convicts ask their keepers for permission to see the doctor. They are kept waiting in line near the head keeper's desk. The head keeper is a person of great power in the prison, only third in importance of rank, but as he comes in daily contact with the convicts, his good or ill will is felt more keenly than the warden's. The discipline of the prison, the distribution of the mails, of the clothes, underwear, shoes, all the details of management, are carried on through him.

As we were waiting for the doctor, the head keeper came along to look us over. He had a big brown face, and a large mustache covered his mouth; two piercing gray eyes gave the impression of an unlimited reserve of pent-up bile, anger and contempt, which at times flowed in a torrent of choice and rare blasphemies.

"Damn you, wop! I'll cure you! You s——!" he shouted, and with both hands he clutched the neck of an Italian, and shook him as savagely as a terrier shakes a rat. His face red and with sickness in his eyes, the unfortunate man tried to explain that he had a sore throat and a fever; but without success. He only aroused another fit of anger.

"You're a faker, that's what you are! You're all fakers, every one of you!" he yelled at us, and finished up by spitting on the floor. The next moment he punished a convict for doing the selfsame thing.

A young doctor hardly out of his teens entered the old prison, escorted by a convict carrying a tray filled with medicine bottles.

Sick prisoners are cured in the simple, old-fashioned way of having mixtures administered to them, the medicine bottles being labeled according to the contents, and the most prevalent ailments, which do not require the remanding of the sick man to the hospital. Cough mixture seemed to be quite popular, fever mixture less so, then followed constipation and diarrhœa mixture, toothache mixture, court-plaster, some pills, and various ingredients for venereal diseases, some cotton gauze, and the indispensable large bottles containing salts and codliver oil.

The visit did not take long. Those who had come twice on the line without having been found sick were punished "against the wall."

After a short inspection the doctor ordered me to the hospital, without allaying my fears by any diagnosis or declaration of a disease, but cautioned me to take a hot bath every day, and to rub the skin with sulphur ointment.

THE HOSPITAL

The hospital is situated on top of the chapel, over the main entrance and hall of the prison.

Two spacious rooms are dedicated to that purpose. The smaller one with a bathroom faces the Brooklyn side and overlooks the mess hall, the keepers' dining room and kitchen, and is usually kept apart for the consumptives. The larger room, also with a bathroom, contains a dozen beds, a closet for underwear and clothes, another for the crockery, two tables, two medicine closets, chairs, and some small tables for patients near each bed.

Six windows face towards East 55th Street on the Manhattan side. Two higher windows look over the roof of the prison, across the Queensboro bridge. The hardwood flooring, the small hospital cots, with mattresses, white pillows and spreads, all spotlessly clean, made the place look quite cheerful and sunny. Every opening was heavily barred. A spacious, clean and airy prison, but still a prison, with a tantalizing outlook towards New York, which seemed so near that one could discern people on the other side of the river.

I

There are five sick men, plus three consumptives, in the two rooms; and our large room looks deserted.

The patients wear a cheap, white shirt, instead of the striped one, and slippers instead of shoes.

A bald-headed man with small, kindly gray eyes and a close-cropped mustache, keeps perfect discipline without raising his voice, using profane language, or bullying the patients. In character, breeding, morals, education, he is superior to the warden and to most of the keepers. His name is Charles Noonan.

Between the hours of eight o'clock in the morning and four in the afternoon a uniformed hospital orderly attends to the distribution of medicine, takes temperatures, and reports to the doctor. At night another orderly takes his place.

The cleanliness of the two hospitals, the distribution of bedding, laundry and food, is in the hands of a convict, usually a patient; all the unpleasant tasks and irksome duties which the orderly is too proud or too lazy to perform the trusty is obliged to do.

Servant and boss, scullion and diplomat, doctor's help and sick man, waiter and majordomo, the convict orderly is the last buffer in the line of authority, the expiatory goat of the penitentiary hospital, a suffering soul in a modern purgatory.

When a criticism drops from the lips of the supreme Prison Commissioner, the Warden passes it along to the "Dep," who calls down the hospital keeper, who in his turn upbraids the orderly, who in the end roasts the trusty.

The present trusty is an old man suffering from an eczema on his fat legs. Tall, bloated, gray, pale, he is despised by the convicts for his avariciousness, his gluttony, his arrogant attitude. They suspect him of being a stool pigeon, and they revenge themselves by making his life miserable through a series of cruel persecutions.

Another trusty who sleeps in a cell downstairs, and eats in the keeper's kitchen, is a famous pickpocket.

Like all or nearly all the old timers, Ed, as he is called, never gossips about his private affairs; he may joke and talk about other prisoners, but never does he say a word about his life outside. He is an old offender, but obedient, useful and energetic; and he is always welcomed back as a trusty or a tier man.

Once inadvertently I asked him: "What do you do outside for a living, Ed?" His laconic answer was, "Oh, everybody!"

But one evening several weeks later, when we had become quite chummy, at the psychological moment when even the most silent and sullen crooks

will sometimes confess and bare their hearts, he unfolded his life, his methods, his cynicism and his mental make-up.

It was an amazing story, interspersed with slang, picturesque phrases, and a callous, sordid philosophy. Later, the testimony of other thieves proved that his story was true.

As he told his story, it seems that clever thieves organize themselves into trusts, or what they call "mobs," frequent the same "joints" and "hang-outs," and work in co-operation with detectives. When a fair, a holiday, or any extraordinary event is announced in any part of the state—or anywhere in the world, for that matter—they are "tipped off," or told about it by the "bulls."

Then when the event "comes off," and a great crowd is gathered, a whole gang of pickpockets, two or three score of them, arrive on the spot.

To save time one after another is sent to the fair authorities to inform them of the presence of pickpockets, and an official jumps on a platform or soap box, and shouts a warning to the crowd against thieves; and while this is going on the keen-eyed "dips" watch the astonished and frightened people place their hands on the pocket or the region which contains their valuables. With this knowledge they can work without blundering, and in teams of three or four, by rubbing or jostling against their victims, they soon relieve them of their money or jewelry.

Watches are seldom stolen, as they are too easy of identification. Often a prominent "sucker" discovers his loss before he leaves the fair, and starts kicking up a row. At once a detective offers to find and return the stolen goods for a reward.

Then, after it is over, the result of the day's work is divided between the "bulls" and the "dips."

Ed became a pickpocket right after he left school. From the reform school to the house of refuge, from the house of refuge to the state reformatory, from the reformatory to the penitentiary, he has climbed all the rungs of the ladder of crime.

He soon discovered that "lonesome," single-handed thieves were crushed in the struggle, so he joined the Benevolent Association for Mutual Protection of "dips" and "guns," paid his dues, and then when he was caught, he got off with a light sentence. His return to prison was part of the game; he came back philosophically, as a travelling salesman returns to his favorite hostelry, as an intermittent but familiar visitor, recognized by the keepers and convicts, and knowing all the ropes along the prison line of least resistance.

Ed barely looks his age, although his face bears the stamp of his dissipated life and the mannerisms peculiar to his breed. He is a perfect fruit of the criminal system. Sodden with all the sexual perversities acquired in prison, he has finally caught the white plague, is afflicted with several venereal diseases, and has become an inveterate dope fiend. Although keen of intelligence, he seems to be without moral prop or ideal of any kind; coldly and cynically he surveys society as his natural prey, his rightful enemy, and an object of his revenge.

Morally, intellectually and physically as crooked and shifty as a mountain trail, he seems utterly beyond redemption, human or divine.

II

The view from the hospital window shows the bridge on the right; in front, the row of cheap tenement houses and streets abutting on the river front from the forties to the sixties; and on the left, looming out of the city-scape, appears the Metropolitan tower. Behind the innumerable painted signs on the river front, the Cathedral on Fifth Avenue, the Plaza Hotel and the St. Regis can be seen distinctly; the Times Building is also vaguely outlined. In the daytime the sight is commonplace; but after the sun, like an enormous ball of fire, has dipped behind the city line back of the streets in the fifties, the scene becomes inspiring to a painter.

The shadows, full of greens and purples, cover as with a charitable veil all the ugly details of the river front; the skyline becomes darker, as if cut out with monster scissors; the sky appears more resplendent and luminous with gorgeous tints, until the fiery blaze slowly dies out, and bluish tints, gray

and purple predominate; and then the city lights, those on the bridge and in the Metropolitan tower, shimmer like innumerable stars.

Sometimes with a clear sky, sometimes in fog, in a snow storm, in rain or in clear moonlight, every night for ten months I have watched an ever recurring picturesque metamorphosis.

Through the north window I have watched the dawn come up behind the Queensboro bridge, and seen the sun appear like an enormous Japanese lantern of pure vermilion—a sight to gladden the heart of a Claude Monet.

Boats pass constantly by, day and night; they are the one great source of amusement of the patients. The little, swift-sailing tug-boats announce their passage by angry and piercing whistles; the graceful yachts of the multi-millionaires sound melodious notes; the large excursion boats announce themselves by their stronger and more ringing whistlings; the largest ones, on their way to Portland, are heard in the distance grunting like sonorous leviathans.

But the most amusing of all is the tiny boat that plies between the dock of the penitentiary and the foot of 54th Street. The distance is about two or three minutes, but this diminutive craft goes two or three blocks up the river and comes back down the same number of blocks, to show that if it tried it really could navigate on the high seas.

Should any vessel larger than this microcosm be seen from a distance trying to pass our little boat, it would start a series of angry, piercing toots, repeated in quick succession. We used to wonder and laugh—oh, we laugh, even in prison; how else could we live?—at the impertinence of this minnow of the river of New York, until we discovered that after a large boat like the *Yale* passed by, the waves left in its wake almost upset the little craft, and it took all the efforts of the brave pilot to bring it tossing like a champagne cork on top of the waves, back safe to the dock.

In summer time the excursion boats, returning home with crowded decks, with all the lights lit, and the band playing and the passengers singing, "The Island of Blackwell," make us home-sick and pensive with longing for life and the world we are shut away from.

III

The trusty in charge of the hospital is getting nervous as the day of his release approaches. A week before the release, no matter how disciplined and peaceful the prisoner may have been, he starts getting cranky and impertinent to the keepers. He acts like a man under great stress, and when he is disturbed he turns savagely round like an angry dog.

The old trusty acted like a drunkard, talking and laughing incessantly, and we thought it was for joy at the thought of his near release. But the real reason was soon discovered. The old thief, Fritz, had been operated on, and when the night orderly was ordered by the doctor to change the sick man's bandages every fifteen minutes, he bribed the old trusty with a long drink of whiskey to do the work for him.

The spectacle of the official orderly trying to do his duty was intensely amusing. In all the years of his work he had slept and snored peacefully and undisturbed. When the time came to change the bandages, he uncovered the patient and began gingerly removing the soaked bandages, holding them with two fingers, at a safe distance, and walking on tiptoe, as if expecting the whole thing to explode. When he saw the terrible, gaping wound he dropped everything back, saying: "I can't do it, it makes me sick!" and woke up the trusty to do the work for him. The next day he reported sick, and he never showed up again until he heard that the patient was dead.

In the meanwhile the old trusty left and I had to attend to the sick man. Every fifteen minutes of twenty interminable days and nights I had to watch, and nurse, and answer the calls of that cranky old man. The wound was ghastly. The surgeons had made an incision twelve inches long right down into the bladder, wherein they had stuck a thick rubber tube.

The sight was sickening, the work exhausting and thankless, and if I had not known that the patient had only a few days to live, I think I would have applied for a job in the coal gang.

On the twentieth night, at about twelve o'clock, I was awakened by the moans of the dying man, who was calling in a faint voice. His face was flushed and it seemed as if all the blood had gone to his head; but he seemed suddenly to turn deadly white, and he lay back still.

A young boy sleeping next to him hid his head under the bed clothes in fright. I was sent to notify the doctor upstairs.

The young doctor declared him dead, and turning to me ordered me to dress him.

I looked at him puzzled and asked: "Dress him up in his striped suit?"

"No," answered the doctor, smiling, "put the shroud on and make him ready for the morgue."

"But I have never dressed a corpse in my life and would not know how to go about it," I protested. So the doctor kindly volunteered to teach me.

First he closed the dead man's eyes; then we put on the shroud, which looked like a night-shirt with frills at the sleeves, and attached to it a conical fool's cap to cover his head; then his hands and feet were tied separately.

When we had done, we laid the body on an empty bed in the smaller hospital, very much to the dismay and terror of the three consumptives who slept there. But they kicked up such a row that they were allowed to sleep in our section.

The next morning when I went on an errand into the next room I stopped to gaze on the body of Fritz. The change that had taken place was startling. During the few months that Fritz had passed in the hospital, although disciplined and silent like most old convicts, he always wore a peculiarly shifty, sneering expression on his reddish face. Now it was wax white, the eyelids had opened, and the pale blue eyes were staring at me with a peaceful, angelic expression. For an instant I gasped at the thought that he might have come back to life, and I called out: "Fritz! Fritz!" but no answer came, and only the gentle, inscrutable smile persisted. I touched his cheek. It was cold and hard. But I could not explain the almost miraculous change in the expression of the face. Suddenly it dawned upon me that death had released the unclean spirit, and left the body to go back to mother earth as clean as it had been conceived.

Soon four convicts came into the room; one, a gangster, with a broken nose, and beady, black eyes, asked me: "Where is the stiff?" As in prison language "stiff" is also the name used for newspapers, I looked at him

foolishly and answered that I had none. He added in explanation: "I mean the guy that croaked last night."

Neither the keeper nor the convicts relished the post-prandial funeral.... Death had come so suddenly and informally, and had left his victim in the enemy's camp, to be carried to the morgue, and later to be buried on a convict's island without benefit of clergy.

IV

Before the old thief died the old trusty had gone, and I had to take his place. I did so only with great reluctance, and with many misgivings as to my peace of mind and body.

I had noticed how the convicts nagged and harassed the old trusty with insults and petty, malicious persecutions to revenge themselves for his greed and his authoritative, arrogant manner towards them.

I realized that life might be made unbearable for me, and that I might be forced to go downstairs to the cells before I had completed my cure.

When the old trusty received fruit he had sold it promptly to the convicts for money. He asked five cents for an apple, ten cents for an orange, so much for tobacco or for a pipe, another price for suspenders, handkerchiefs, or whatever he might have to sell or barter.

After his release the Italian consumptive said that he had got only half portions of his special food that had been sent in for him, as the trusty cut the portions in half in order to sell the remainder to others.

I unconsciously sensed that the only successful method of taming the ferocious, revengeful natures of the convicts was by kindness and patience; by treating them as friends in misfortune, and not as enemies or inferiors.

When I received tobacco or fruit I divided it among the men who seldom if ever had any visits or mail; the magazines were distributed among them and later were carried downstairs from cell to cell, until the whole prison had read them. To my intense surprise, English, German, Italian—even "high

brow" magazines like the *Mercure de France* and *La Revue* were eagerly demanded and read by some of these strangely intellectual convicts.

The men who had considered me an aristocrat, and nicknamed me "The Count," soon began to discover that my sympathy was for their troubles, their unhappiness, their helplessness, and not for the warden and the keepers.

I was fully repaid for my attitude. I was made their confidant, their confessor, the judge of their squabbles, a peacemaker and a go-between; when trouble and punishment were in sight, when some particularly unclean and revolting duty was to be performed, the convicts always asked to relieve me of it; and it came to pass that after a while I could devote most of my time to reading, and only attended to the less manual work, such as acting as assistant to the doctor.

Among the patients there was a one-legged negro who was suffering from a painful and unmentionable disease. His big lips, square jaw and scowling countenance made him resemble a big, black bull-dog. Even the keepers were in awe of him. In a fit of danger one day before the old trusty left he very nearly smashed the old man's skull with his crutch.

The first morning that I was left in charge of the hospital I felt some trepidation as to the outcome of my policy of kindness.

The test came quickly. During lunch the negro ordered me, in a loud, angry voice, to bring him something. I went over to his bed and told him gently I was surprised that he had forgotten his good manners; that he had evidently made a mistake in thinking that I was either his keeper or his valet; that we were both convicts, both in trouble, and should treat each other like self-respecting men, helpfully and considerately.

He looked at me with a frown on his face, as he was not quite certain whether I was deriding him; but soon the frown disappeared, and then I said to him: "Now, Davis, what can I do for you?" He answered in a gentle and friendly voice: "Excuse me, mister. I always been treated like a dog. Will you please bring me a spoon?"

From that day on he was tamed; he became more talkative, and even polite. During the long winter evenings he broke the morose silences to tell us of

his adventures, and to relate the story of his tragic and terrible life.

He had lost his leg in a railroad accident; and then he had spent several years in hospitals and more years in legal fights to try to collect a few hundred dollars which were never paid. Then, jobless, hungry, destitute, desperate, he had begun to steal. Always unlucky and awkward, he was invariably caught, arrested, and sentenced to jail. Twenty years of his life he had spent in jails and prisons all over the country, and he had even had a taste of the horrible chain gangs of Georgia. He described the punishments he had to undergo because of his inability to work in prison shops; the weeks passed in the "coolers"; the beatings, the tortures he had undergone at the hands of savage, ruthless wardens.

It was an awful, an almost incredible story! It seemed somehow impossible that a human being could go through such an ordeal, such harrowing brutalities, and come out alive and tell the story.

One day he said, "I ain't no good since my accident. Never had a chance to learn a trade or be honest. If I don't come across to the 'bulls' they send me back to the 'pen' for a year. I'm sick of this life. Next time I'll do something that'll send me to Sing Sing for life. This dump is rotten. I'd rather go up the river for two years than stay in here for six months."

V

The orderly asks me to attend to the consumptive, as he hates to do it himself. I have to bring him his food, I have to clean the cup which he uses as a cuspidor, and be careful to wash it in a solution of carbolic acid, and wash my hands each time afterwards.

The poor boy flies into uncontrollable fits of anger over trifles; then his face becomes almost a livid green, and he seems to be foaming at the mouth—little flecks of foam and saliva—like a vicious horned toad. When in that state I usually speak to him in a low, monotonous voice, hoping to quiet him; and after a while he becomes calmer, his features relax, his body slowly unbends, and he finally slips under the bed sheets, going to sleep as if the effort had completely exhausted him.

It used to remind me of the snake charmers in India, taming angry and hissing cobras by the monotonous sound of a flute. Suddenly the hoods would fold, the terrible fanged mouths close, and the snakes would wag their heads slowly to and fro, with little red tongues playfully wiggling in sign of delight until placed, harmless and hypnotized, in a capacious basket.

I do not know if it was my arguments or my voice that attained the object with my consumptive patient, but the result was evident after I had talked to the poor boy for a few minutes.

In great excitement he confessed to me one morning that he had made up his mind to commit suicide if his fine was not remitted, and he was not released after his one year term. I told the Sister of Mercy of his threat and she promised to see to it that the judge would remit the fine. When the day of his release came, much to my relief, he was freed.

I have reached some interesting conclusions as a result of my observations of the ways of the convicts and their attitudes towards one another.

Life in a prison, under ignorant and often vicious wardens and keepers, although seemingly leveling the men's standard to the most degrading and contemptible measure allowed by law, does not eradicate the convict's idea of class. A class, or perhaps it would be better to say a caste system, exists here, as in all the jails all over the world, as well and as subtly graded as social life in Manhattan, London, or Benares.

The Camorra, of Naples, originated in the jails of the old kingdom of Naples during the rule of the Spaniards and Bourbons, being invented by the convicts to protect themselves against the greed of the prison authorities. Later it branched out and was organized outside. The same holds true in America, in the sense that convicts in prison plot and plan crimes before their release, and agree to continue their acquaintance and work on the outside. Boys and young men serving their first term are easy prey for older and wiser criminals.

Although the ideas of caste in prison are not the same, and are not formulated according to religious, financial, intellectual or aristocratic

standards, nevertheless the principle is the same. In most societies the leaders are people with "blood," money, or privileges of some sort. In India the high caste Brahmin is born to his station, and no amount of money or intellectual attainment can make one if he is not born to it.

In prison the ethical standard is as simple as the cave dweller's, or as that of savage tribes. Caste among convicts is a sop to their vanity, to their outraged and primitive sense of justice; society made them outcasts, and they retaliate by creating a society of outcasts wherein they strive to become the leaders, the greatest, the bravest, the cleverest among the Pariahs; and like the Pariahs they consider other castes outside as lower than their own.

Convicts admire physical prowess and brute strength, fearlessness, "nerve"; they look up to those who commit deeds of violence, such as gang men, bandits, burglars; men who will take their chances at killing or being killed rather than be arrested.

Next to these in the order of caste come the more intelligent but less courageous types of crooks, such as confidence men, forgers, gamblers, dishonest bankers, embezzlers, lawyers, politicians. They represent the intellectual aristocracy of crime, to be approved of but not to be put on the same plane as the former.

To the third caste, even less brave, less cunning, belong the sneak thieves, the pickpockets, repeaters, bums; marking the border line on its downward course with such types as wife beaters, wandering tramps, bums, and dope fiends who steal only to satisfy their irresistible cravings for drugs. Those individuals who live on white slavery, professional degenerates, and their like, are ridiculed and nagged by the upper castes; the effeminate "sissies" are also a constant butt for the jests and abuse not only of convicts, but of keepers as well.

On the lowest rung of the social ladder stand the stool pigeons and the detectives who are so unlucky as to be sent to prison. These latter are hated, abominated, despised, by their fellow prisoners with all the intensity, ferocity, and implacable hatred of which such men are capable. It sometimes happens, in spite of the vigilance of the keepers, that they are murdered in prison. In the minds of the other convicts these stool pigeons

and detectives are their most dangerous foes, because of the intimate knowledge they possess of the technique of crime, and because of the similarity of their ways of living.

VI

The one-legged, bull-faced negro in the hospital was watching my assistant, who, of his own volition, and without being ordered to do it, was laboriously polishing the brass chandeliers hanging from the ceiling.

"That boy ain't no thief," he remarked philosophically. "A thief is a thief 'cause he won't work, in or out of jail."

A crook will waste many days, nay, sometimes weeks and months, and take infinite pains to plan a robbery, the result of which he imagines is getting something for nothing. Sometimes the prize is nothing, sometimes it is considerable; and then it is dissipated in gambling, dope, and riotous living. The fruit of legitimate work he considers a meagre result of foolish painstaking effort.

The mental calibre of these men is similar to that of naughty, precocious children, or of savages; they have streaks of yellow and streaks of insanity; they often have a strong will, but no morality; a keen intelligence, but no principle; a purpose, but no good or high-minded ambition. Almost without exception they are gamblers; they lack imagination, but they are possessed of an over-weening, childish vanity; they have great stubbornnesses, but no sense of proportion or responsibility.

Their ideals are wholly physical; they love fine clothes, jewelry, good food; they admire the fair sex, they crave money for all the physical results it will bring. They are very proud of their criminal successes, of their reputations as "tough guys," bad men with terrible records, fierce and relentless in their loathing for "squealers" and "bulls."

They consider their gallery of Immortals as unique, and never sufficiently appreciated by those outside their world of life.

A complete lack of imagination prevents them from foreseeing the futility and the inevitable result of their lonesome battle against the united forces of

society.

An almost unanimous characteristic is their cheap sentimentality, but at bottom they are nearly always kind hearted. They have, too, a keen sense of justice, and often they are willing to admit that they deserve their punishment; but they rebel savagely against the injustices, the inhuman treatment, the tortures, inflicted by prison authorities. It is the helplessness of these prisoners, and the indifference of the public towards them and their fate, that make prison authorities so cowardly and brutal. A healthy publicity in prison matters, and a more charitable and sympathetic attitude on the part of the public, would very soon change the attitude of the wardens and the keepers.

VII

In the beginning the reticence of the convicts puzzled me, even after I knew that they regarded me as a political prisoner and not as a stool pigeon. Only after a long acquaintance, and then unwillingly, would they admit shamefacedly that their living was acquired by criminal methods. More than any other argument this proved to me that their criminal pride is only a bluff, their pose as "tough guys" only a pretence, and the supposed excitement of their profession only a misdirected and false energy. Their vainglorious, strutting behaviour is really the result of the insulting, demoralizing, contemptuous attitude of the prison authorities, which seems to say: "We are virtuous men; you are only crooks and bums. We are paid by the authorities and the state to punish you and to break your spirit."

The convicts believe that few of the keepers are virtuous or honest men, and the constant revelations of prison graft only arouse their envy, and the galling thought that they are the helpless victims of a higher type of crooks. In seeming self-defense, therefore, they assume their attitude of revenge toward society, of stubbornness and pride and defiance toward the keepers. They soon discover, if they have not already learned, that humanity, charity, and justice are not to be expected from their oppressors; and that our justice is not Christian, nor scientific nor human; but only vindictive, wasteful, idiotic and indeed blind. And so in despair these misguided men become more vicious, hardened and corrupt than they were before prison took a hand in their shaping.

A prison term, which is supposed to reform them and to break their wills, is only a school for criminality, a higher school or university for the underworld, where confidences are exchanged, new alliances are formed, diseases and homosexual habits contracted. The spirit is tempered for future criminal records, instead of being broken, and the body strengthened for coming excesses.

The line of convicts which upon their release streams out of our prisons, is like a large sewer emptying its filth back into society; slowly corrupting, demoralizing and polluting everything it touches.

The stool pigeons are feared by the convicts as well as by the keepers. They keep the warden informed of the mysterious happenings, among the prisoners, and the illicit relations between the keepers and the convicts. In their turn the stool pigeons are rewarded with privileges, such for instance as not being punished for infractions of the rules, which would mean the terrible "cooler" to the ordinary convict. The wardens' greatest fear is that letters written by convicts relating some of the outrageous occurrences of every day in prison may reach the columns of a newspaper and bring about unpleasant notoriety, and even a more disagreeable investigation.

On very rare occasions some angry convict will write to a newspaper relating his unpleasant experiences, but the rule is that the sooner one forgets having been behind the bars the better it is.

A prisoner caught sending communications to the outside world by underground methods, without having his message read by the office, is punished with a few days in the dreaded "cooler."

This is what the "cooler" is: The convict is divested of all clothes except his underwear, and he is then taken to a cell which contains only a bucket and a wooden plank on the floor as a place of rest and sleep. The cell is hermetically closed by a door which keeps out all light and air. A little ventilation, just enough to keep him from suffocation, comes through a small hole in the wall. The darkness is like a solid mass; it is so intense that the prisoner cannot see his hand near his face. Every twenty-four hours the cell is opened and the convict is given a thin slice of bread and about a

thimble full of water, just enough to keep him alive. This performance is repeated according to the length of the punishment, that is to say, the door is opened only once in twenty-four hours, to permit the giving of food and water and the emptying of the bucket, whether the prisoner stays in that awful place one day or twenty-one. Many prisoners have been known to stay in the cooler for weeks at a time.

After having lived in complete darkness for a long time, coming out into broad daylight causes untold agonies, and very often has tragic effects upon the eyes and eyesight of the prisoner; usually they have to be sent to the hospital to be treated for inflammation of the eyes or for partial blindness. Men kept long in the cooler sometimes become driveling idiots; others go violently insane and have to be sent to Matteawan for life.

The punishments are all inflicted by the warden, on the word of a stool pigeon, of a keeper, or of a man in charge of the workshops who seems to be a contractor of almost unlimited power in the prison, second only to the warden.

VIII

The prison authorities are not supposed to abuse, vilify or use blasphemous language towards the prisoners; it is forbidden under penalty of the law.

Of course, as far as the convict is concerned, such a law or rule is a dead letter. Should a prisoner protest to the warden against vilification or profanity, he would only be laughed at; and should he insist on making his complaint to the prison commissioner, his letter would never be sent, and his persecution would begin at once.

The other day a quarrel broke out between two prisoners. A keeper tried to stop it by hitting one of the offenders with his stick, and at the same time calling him an unmentionable name. The convict retaliated with a punch on the jaw that floored the keeper.

The convict was punished with two days in the "cooler," but the offending keeper was not reprimanded by the warden. And when the man came out of the "cooler," the doctor found him suffering from an inflammation of the eyes which kept him in the hospital for two months.

When he asked for writing materials he was told that the punishment meted out to him automatically eliminated all the privileges of a convict; and he was not permitted to write home or to receive visitors for two months. The electric light in his cell was cut off and he was not allowed to read books or magazines, newspapers being always barred.

In the beginning of my stay in prison the use of profane language was, to put it mildly, quite prevalent; but it became rare soon after the election of Mayor Gaynor. Even their sticks were taken away from the keepers for a while. And it was discovered that discipline did not suffer in the least from the lack either of foul language or the stick.

IX

The food, brought up by a convict from the keepers' kitchen to the hospital, is distributed by us thrice a day, on a long table covered by white linoleum and standing in the middle of the room.

We have to clean the bathroom and the spittoons, sweep the floor, empty the garbage can, get the ice, make the beds, give the medicine, take the temperatures, mark the charts, help the doctor, besides giving and receiving the laundry—in short, the immediate and dirty work of the hospital is in our hands. The one happy hour of the day is at nine in the morning, when we are privileged to empty the garbage can at the docks on the Brooklyn side or go to a nearby oven to burn its contents.

For a few minutes, while filling a pail with water from the river to wash out the empty garbage can, we watch the tug boats, the canal boats, passenger boats or yachts pass by, and the people on board always greet us with a wave of the hand or a merry shout. But never have the passengers of the aristocratic yachts even condescended to look at us.

No matter if it rains or snows, or if fog hangs over the whole landscape, the few minutes alone, untrammelled by the presence of a keeper or the crisscross pattern of the bars, make us feel as if we were really free men; then we march reluctantly towards the ice house to the big chest containing the supply of ice for the different departments. The ice is cut and put into the empty and clean garbage can. When there are no keepers around we

linger to talk to the "skin" gang, which is composed of a few convicts whose duty it is to peel potatoes, onions, carrots and cabbage for the kitchen.

It is a great place for the exchange of news of the day—of the gossip of new arrivals, the punishments, the petty incidents or the headliners of the most important events, the opinions of the convicts about the goodness or badness of the keepers; in short it is a sort of clearing house for information as to whatever is happening in the penitentiary.

One of the men in charge of the gang is a blond, powerful, fine-looking convict of German parentage. He belongs to the high caste among the prisoners, and shows it by his manner toward the lesser castes.

In the beginning he answered my questions in monosyllables, but after several months of daily intercourse, when he had thoroughly satisfied himself of my status, my attitude, and my antecedents, and when he learned that I was an aristocrat only in thought but a democrat in manners, he became talkative, and piece by piece, incident by incident, he told me of his life, until I was able to construct it almost as a whole.

He was the son of honest parents, who had started him in life as a skilled workingman. He lost his position during a strike, and one of his children died of starvation. Fearing that his other child would meet a similar fate, and seeing no prospect of another job, he started on his career as a burglar. Being a skilled mechanic, he found it easy to fashion tools for his trade, which, as he claimed, brought immediate and satisfactory results.

X

One morning as a young convict was walking on an errand towards the shops, a letter dropped from his coat onto the ground in the yard. The warden, who was walking in the same direction, not far behind, picked up the letter and shouted to the man to stop. The convict turned back and appeared confused when he saw the warden with his letter in his hands. The warden flayed him with his heavy sarcasm, upbraided him for violating the rules about writing letters, and leered at him in malicious anticipation of the

punishment to come. Finally he condescended to read the letter, so as to fit the punishment with a few quotations from the letter.

But strange to relate, after he had read the letter, his frown disappeared, and with it his terrible anger. In a voice which had turned from a broken falsetto of anger to a gentle, low pitch, he inquired where the young man was working, how many more months he had yet to serve, and finally asked if he had a preference for any other place besides his present assignment. The young convict reluctantly admitted that he would prefer to work in the keeper's kitchen.

The same day he was transferred to his new duties, which are considered privileged by convicts because of the liberty and the better food they afford. The young convict, being disgusted with the prison fare, and the monotonous, unhealthy work in his shop, with a cunning almost Machiavellian, had hit upon the original and brilliant idea of writing a letter to an imaginary friend in which he praised the penitentiary and lauded the warden in fulsome, enthusiastic, unstinted praise. He dropped the letter purposely, knowing that the warden was only a few paces behind him. The acting was done to perfection, the trick worked without a hitch, and our youthful Ulysses got his job for a laudatory song.

The tale went round the prison, and although it made the warden the laughing stock of the penitentiary, he never discovered the deception.

The warden, unlike the deputy warden, is very much disliked by the convicts. Among themselves they call him the "old hyena." Convicts as well as visitors all seem to be united in accusing him of brutality, coarseness, and intemperance of speech. Visitors who have to support themselves with their daily work find that all kinds of difficulties are put in their way. They have to get a card at the commissioner's office at 20th Street, then they must take a special boat, and when they arrive at the prison they are forced to wait an hour before they are searched.

Thus nearly a whole day, from nine in the morning till two in the afternoon, is given just to see the object of all the trouble, and then, separated by a thick screen of wire, they are allowed only fifteen minutes.

Under the rules visitors are permitted only once a month, but twice by a card from the prison commissioner.

XI

One day a poor Italian woman, after overcoming all the difficulties in actually getting to the gates of the prison, happened to arrive a few minutes late. The iron gates were banged in her face and she was ordered away.

She had come a long way to see her son, and she could not tear herself away from the neighborhood of the prison. She was poorly dressed, without even a hat. Tears were streaming down her cheeks. In her ignorance she looked up to the barred windows of our hospital imagining that it contained her son. She waved her hand, smiling through her tears, hoping—perhaps thinking—that she could communicate to him that little, distant greeting. Then a keeper came out, shook a stick at her and ordered her away.

She went back to the docks and onto the little boat that was to carry her back to New York. As the boat moved away she continued to wave a red bandanna handkerchief until she disappeared from view.

Miss M—— came to see me one day but she was refused admittance because I had had another visitor in the same month. The warden asked her: "What do you want to see him for? Are you his wife?" "No," answered Miss M——, "I wouldn't visit him if he was my husband."

The warden is very punctilious and severe towards infractions of the rules relating to visits and visitors. His strict regard for the rules, however, did not deter him from allowing two detectives, sent by agents of the Mexican government, to visit me without my permission; he even placed another detective on the line next to another visitor so that he could overhear our conversation.

I had written to a friend that, as it was not only unwise, but impossible in my situation to put on paper certain matters of importance and of grave concern to me, I would wait for the day of his visit to communicate it orally.

On that day a red-headed detective was placed next in line to my visitor, ostensibly to talk to a convict; but the prisoner told me afterwards that he

did not know the alleged visitor and that he had never seen him before.

I had to whisper my message in French so as to prevent the spy from overhearing and understanding it.

This proved to me that my letters were copied by somebody in the Warden's office, and communicated to the American lawyers representing the Mexican government; and also that somebody was powerful enough politically to give orders in the Commissioner's office, which in its turn placed the detective at my visitor's side.

But when two newspaper men asked permission to see me I was informed that I would not be permitted to stay in the hospital if I allowed reporters to visit me.

One day I heard the warden upbraid a girl who had come for the first time to see her brother. Not being used to such ill-mannered treatment she began to weep, and that of course only made matters worse.

Half an hour later the Commissioner of Prisons arrived on a visit of inspection. In the hospital he called the warden to task for something—but the warden was as mute as an oyster. Together they went into the consumptive ward, where the warden began extolling the quality and quantity of the fresh air circulating in the room. The commissioner turned round and snapped impatiently: "And that's about all they ever get!" But the warden never said a word. This man, this mighty czar of the penitentiary, who is so brutal and so insolent to the convicts, so arrogant to the keepers, and so uncouth to the visitors, in the presence of the man who could take his good job away from him, was as meek as a lamb.

A keeper who knew the warden well remarked: "He has the soul of a valet, insulting to his inferiors and fawning to his superiors."

XII

About a dozen women convicts come twice a week to scrub the hardwood floor of the hospital. The majority of them are colored; the white women are either old and faded, or young and dissipated-looking. Very few of them are

either refined or good-looking. Petty larceny is the crime for which most of them are sent to the prison.

Two negro women, young and rather tough-looking, are scrubbing the floor. They are in prison for having held up and robbed a man in the streets of New York. The man never recovered his \$800.

As the convicts always attempt to joke and to flirt with the scrubbing women, they are usually ordered into the bathroom until the work is done, with the exception of the bedridden patients.

I discovered that quite a correspondence goes on between the men and women convicts. A young convict became quite enamored of a blonde, sporty-looking girl, and they took great risks to communicate their love notes. I was made the confidante in their love affair. Some of the passages read thus: "I love you, I love you, where did youse put the tobacco?" ... "I dreams of you day and night.... Get me some butter." ... "You was the best looker I ever seen.... Don't forget to put the matches at the foot of the stairs."

The women do not get the weekly ration of tobacco allowed to the men, and as a consequence they must beg tobacco and matches from the men.

All the house work, such as making beds, sweeping, cooking and waiting on table, in the house of the warden, in the apartment of the deputy warden, and in the dormitories of the keepers and matrons, is performed by the women convicts.

An old Irish woman while in prison took such loving care of the children of a former warden that whenever her time was up and she was discharged, her weakness was encouraged, and she was even purposely made drunk, then arrested and sentenced to the penitentiary again as an old offender, year after year, until the children of the warden grew big enough to take care of themselves.

Before the present system of having a physician live in the prison came into vogue, doctors visited the patients once a day; the surgeons came over only for the operations. The operating room is always shown with great pride to visitors, but never the "cooler."

'Twas told that one night, in the earlier period, when there was no resident physician, a woman convict startled the prison with piercing cries. She was in the throes of child-birth. The doctor and the warden being absent, the matrons did not dare to open the cell. Later a young doctor from the city hospital was called in. He peered through the bars, then turned and declared that the woman would be all right in the morning. When the cell door was opened next day the woman was found unconscious and the child was dead, strangled or suffocated.

The other day I went for the first time into the women's section to take some medicines and carry away our laundry. The women's section is under the same roof as the old prison wherein I passed the first two nights. A wall divides them, but the cells and the system of tiers are the same.

The cells measure about 3 by 7 feet, with gray, damp, greasy, massive walls, without any ventilation.

As I was looking around I noticed many women sitting in their cells, some working outside, sewing or knitting, others sweeping or mopping the tiers or the floor.

My attention was attracted by two women with babies in their arms. A third, a young, quite delicate, fine-looking girl convict, was sitting on a chair sewing. Near her, as if afraid to move, stood a little girl three or four years old, with dark, curly hair, red cheeks, and big, black serious eyes. She looked at me with the sad, wistful smile of some of Da Vinci's women.

My imagination carried me back to the trial room where the little girl had stood near her mother to hear the sentence; I thought of how she had shared with her the cell in the Tombs; how she had been carried to the penitentiary in the "Black Maria," with her mother shackled to another convict; how every night she slept in the narrow, dark, foul cell, barred and locked; how she ate the prison food, and remained all day behind gray walls, without seeing the sun or the sky or any flowers—only striped convicts, matrons and steel bars.

The innocent child must have seen all these strange happenings, and wondered what it all meant. And some day, when she is grown to womanhood, or motherhood, she will remember it all, she will know that

she lived with her mother in a prison. She will recall the infamy, the degradation—and the shame of it will be branded on her soul as long as she lives.

XIII

Never a month passes but some convict is brought up to the hospital to be kept under observation to determine whether he is insane or faking insanity.

The warden and the keepers always suspect prisoners of faking sickness or feigning insanity. As a rule the convicts do not like to stay very long in the hospital, as they are not allowed to smoke, and the time is very slow and tedious without any kind of work.

A small, stocky, bearded, wild-looking Italian was brought over from the Tombs before his trial. He would not touch food, and the Tombs keepers were afraid that he might die on their hands.

It took six men and one doctor, sitting on his arms, legs and stomach, to feed him a glass of milk by a rubber tube through his nostrils. It was a nauseating performance, and luckily it was not repeated.

We have to dress and undress him every morning and night. About six o'clock every morning he starts walking up and down from the bathroom to the bay window, a distance of about twenty-five paces; and he continues it all day long, without rest or pause, until nine o'clock at night. Every fifteen minutes or so he calls out in a sing-song, southern dialect: "Oh! Giorgio Washington! Warden of this great prison! My dear wife! My beautiful little children!" And then he looks up at the clock and adds: "And the Holy Ghost of the clock!"

After he has been put to bed he covers his head with the bed sheets, but every hour he sticks his head out and like a cuckoo bird in a Swiss clock he repeats his monotonous story.

Everybody is kept awake, the patients as well as the keepers. The first night an old keeper who was on watch tried to hush him up, but without success; so he stood at the head of the bed watching for the moment when the man would uncover his head again and sing out.

We waited breathlessly, looking forward to the expected minute. Suddenly the head appeared and the old keeper swiftly hit it a stinging whack with a wet towel, which cut the "Giorgio Washington" in two; the head went right back under the bed sheets for the rest of the night.

After two weeks the man was finally sent back to the Tombs. Although he had eaten only once in that time, it took half a dozen sturdy men to dress him up and turn him over to the sheriff.

Once in a moment of lucidity he asked me to get him some food, for which he was willing to pay. Then he begged me to write to his wife, and when the letter was written and addressed, he became mad again and tore it to little bits, and resumed his peripatetic, insane round.

A young Pole, about twenty-five years old, is brought over from the workhouse. His face is blue and his lips are bleeding from blows. We have to dress and undress him also like a child. Whenever food is brought, and he is told to eat, he weeps; whenever anybody speaks to him he weeps; and he whines and carries on like a frightened baby in a strange place. He has the body of a powerful longshoreman and the mentality of a new born baby.

There is a convict here afflicted with suicidal mania. Those in the hospital who are not insane have been told to watch him and prevent him from harming himself. He is the same man who tried to drown himself by jumping into the river. We have to keep the medicine closet locked and the bread knife hidden.

One night he waited until everybody was asleep, then, sneaking into the bathroom, he took a bottle of medicine which had been left standing on top of the ice box, and gulped a great quantity before the bottle was torn from his lips. He was quite sick for two days. Luckily the bottle only contained "Cascara Sagrada," a powerful cathartic.

Another time he tried even to push the razor into his throat while a convict barber was shaving him. And yet, every time the barred door is locked or unlocked, he seems to be in mortal fear that somebody is coming to shoot him.

The other evening he sat near me while I was reading and suddenly he leaned over and, with quivering nostrils and in a hoarse terrified whisper, asked me, in German, if I was his friend.

"Certainly," I answered. "What can I do for you?"

"They are going to shoot me to-night!" he said. "Get me the bread knife so that I can cut my throat, or some poison to kill myself."

I tried to pacify him, but he was in a state of abject terror. So, thinking it best to do so, I offered him what he imagined to be poison. He drank it quickly and with great relish, waiting impatiently, with gleaming eyes and a sickly, malicious grin, for the death that was to come. But death did not come; the medicine was only a strong dose of salts. This second cathartic potion cured him effectively of his suicidal mania, for thus he came finally to the conclusion that all the alleged poisons in the hospital were only snares and delusions.

After a few months two men with papers came over from the asylum of Matteawan and plied him with questions, his answers to which one of the men wrote down. The poor German cobbler was scared stiff, answering the queries as if his life depended on his replies.

Among other things, he was asked why he had jumped into the river.

"To learn shwimming," was his quick retort.

While we were getting him ready to be taken to the insane asylum he was blubbering and sputtering, frightened and inarticulate; and the tears streamed down his round, fat, childish face.

XIV

The hospital has become a sort of observatory for the insane. But all the convicts who show signs of insanity are not brought up to the hospital.

Confinement in the cells without work or exercise from Saturday afternoon to Monday morning, and the punishment in the "cooler," are responsible for most of the cases of insanity.

When the supposedly insane convicts do not try to commit suicide, or do not keep the prison section awake at night by their yells, they are usually kept in solitary confinement in a cell, sometimes for weeks at a time, until at last they are visited by doctors and declared insane.

An Italian peddler who claimed to have been sentenced unjustly for buying stolen copper wire, was found within a few weeks after his arrival at the island with two tin cups in his cell. One cup had been left behind by a released convict, the other belonged to him. Although he could not have known of the infraction of the rules, he was dragged to the wall by a keeper. When the warden came to dispense "justice," he heard the keeper's story and then asked the prisoner to explain. The man tried to explain in his broken English that he had found the cup in his cell; but the warden cut the gordian knot impatiently by saying: "None of your damned excuses! Two days in the cooler!"

The result can be imagined. The unfortunate peddler, frantic already from the idea of having been unjustly sentenced, and worried sick over the fate of his helpless wife and children, could not stand this other bolt from the sky; this punishment for something he did not understand, in the form of terrible torture in a pitch dark cell, without food or water, for an infraction of unknown rules; and he broke down completely under the strain. When he came out of the "cooler" he was, as the keeper declared, "completely bug-house."

For some time we were kept busy watching the peddler; even his shoes had to be taken from under his bed as he tried to knock the heels into his skull.

Much to my dismay, I was put to sleep near his bed. Half a dozen times he tried to strangle himself, and on the morning of his release, while I was asleep with my back to him, he jumped on my bed like a cat, and with his two powerful hands tried to choke me to death. Convicts came to my rescue; and when he was asked the reason for his attempt on my life, he calmly declared that it was because I had signed the warrant for his death at nine o'clock in the morning.

When we took him downstairs later, he refused to change his striped suit for his street clothes, and shouted that he had made up his mind to die in the

"cooler" at nine o'clock. His wife had to be brought over from the 54th Street side, and she induced him to dress and go home.

A religious maniac was put under our care a week before his release. His particular delusion was that he was preaching in the desert. When a keeper approached to silence him, he lifted his right arm and, with eyes popping out of their sockets and a terrified look on his face, he shouted in a stentorian voice: "Vade retro satanas!" ("Get thee behind me, Satan!") "I say, for it is written, thou shalt worship the Lord thy God, and Him only shalt thou serve!"

In his sane moments he was silent and morose; and when told about his strange behaviour, he answered that he knew by the sudden rising of heat to his head when a fit was coming.

His religious sermons, which kept us awake several hours in the night, were interrupted by excursions under beds and tables, while he barked like a dog at any one who tried to stop him. He was then impersonating the champion bulldog, Rodney Stone.

Another addition to our collection of the insane was a giant negro; but fortunately the expression of his derangement was only before meals, when he knelt at the table, saying grace, but refusing all food.

Even Matteawan sent us a man who was supposed to be cured. He was a muscular, low-browed German sailor who spoke bad, ungrammatical German and worse English. An accident to his leg brought him upstairs, and when the doctor undressed him we saw that his whole body was covered with blue and red tattoos, primitive and childish drawings of nude figures, which reminded me of some of Matisse's masterpieces.

He asked us every few hours in a terrified whisper if we did not see the furniture and the walls rock as if in an earthquake. At night he would point a long finger to the ceiling, where he claimed to see a small opening out of which a keeper thrust his head, abusing him with vile names, and shouting that in a short time he would be electrocuted.

Otherwise he was inoffensive; and sometimes he would amuse us by relating his adventures with the women in Matteawan.

Like most insane men, he slept very little, sitting up in his bed all night, holding two crutches tightly clutched, on the alert for the keeper who was going to electrocute him.

But an unwise threat to brain Richard, the assistant, deprived him of the necessary but dangerous crutches.

XV

Another patient was sent up by the doctor. He seemed so sick and weak it appeared a wonder that he could still walk. He was a poor Jew, suffering from stomach trouble. Emaciated, yellow, with an expression of intense suffering on his face, which was deeply furrowed by wrinkles, with a beard a week old, and his long, pointed nose, he looked like a sick vulture.

When he begged for special food, the orderly sarcastically offered him the choice between filet mignon with potatoes, or cutlets with French peas. The doctor, however, realized that unless he was put on a special diet, the man would die on his hands.

He had been sentenced to two months in the penitentiary for stealing two packages of cigarettes, and the judge did not realize that it was his death sentence. The tenacity of the man in clinging to life was amazing; it exemplified anew the remarkable vitality of his race.

He was always disobeying the doctor's orders. He tried to get up from his bed one afternoon, but he fell, and the bed pan, with all its contents, emptied over him and all over the floor. I ran to assist him, but—I was never well in prison—the stench was so overpowering that I became sick and hesitated for a moment, and had to turn away. Two convicts who had joined me saw my sickly face and smilingly said: "Never mind, boss; you go to the window to get some fresh air. We'll clean up the mess for you."

Everybody wondered how the poor man had managed to keep a flicker of life in a body which was mere bone and skin.

One night in my sleep I imagined that I had heard him call. As I sat up in my cot I heard his rattling, hoarse whisper calling the night orderly: "Oh, Mr——, please give me some water! A glass of water! I am dying!"

The orderly, who had been sleeping with his feet on the desk, woke up, looked towards the patient, changed the position of his feet, and shouted: "Ah, shut up, you kike!"

I got up and brought him a glass of water. He thanked me, and whispered: "I am dying! I don't want to die in jail!"

I tried to cheer him up with the thought that he would be released in two weeks; but he shook his head. Terror was written on his ghastly features. "Please, I don't want to die in jail," he said.

They were his last words.

XVI

A boy with blond hair, blue eyes, pink and white as a girl, modest as a nun, gentlemanly and soft spoken as Lord Fauntleroy, came upstairs to be operated on for a tumor. A sentence of two and a half years had been inflicted on him for selling cocaine. This deadly drug was furnished to him by a friend once when he was suffering from a cold. He did not know what it was, but he felt a wonderful exhilaration and a new strength come upon him, so that his illness seemed to vanish. The reaction was terrific, but he became addicted to the drug; and as he could not afford to buy the stuff, he began selling it, both for the profit and to be able to acquire it. His youth, and his already weak will, made him an easy prey to the evil company into which he was soon thrown. His father and mother and sisters were respectable and law abiding people of the middle class, but they did not seem able to cope with the peculiar conditions into which he had fallen.

Now that he is behind the bars he seems to realize the danger of his weakness, and he speaks of going back home to work among his own people.

After he was well again they sent him downstairs to work in the machine shop. Within two months he was back again in the hospital to be operated on for another tumor.

What a transformation! Instead of the gentle, well-mannered, repentant young sinner, we found a pale-faced young tough, with a sneering grin,

walking with stooped shoulders, chin forward, arms curved, closed fists, in imitation of "gorillas" looking for trouble.

In his speech there was also a great change. Where there had been little personality or color, there was now a picturesque wealth of blasphemies; names and adjectives and punctuation were expressed by short but intensely vile words.

When we remarked at the astonishing change, he answered, speaking through one side of his mouth: "Ah, quit your kiddin'! You talk like a preacher. I ain't no sissy no more. When I gets out o' here I'll pull something big that'll knock you stiff. You get me?" And he spat sideways on the floor in supreme contempt. But when we laughed at his pretence and strutting, he blushed in anger and disappointment.

It seems that when he was sent downstairs after his first operation he was "doubled up" with a notorious burglar, who undertook to educate him and train him, with a view to using the lad to assist him in his work after his release. A few weeks later his mentor joined him in the hospital, but unlike his talkative pupil, who was quickly ordered to "shut his mug," he was reserved and secretive as to his life and plans.

But one evening at dusk, as we were both watching the New York skyline from the barred windows, the reserve gave way, and the cracksman told me of his life.

It was one of those rare moments when even a strong and evil spirit will waver and doubt; when his heart will overflow with disgust and the hopelessness of his earthly quest. The attitude of contrition dissipated like smoke when he was asked if it was not possible to make a living in an honest way.

"Nothing doing," he said. "The bulls won't give me a chance. They'll spot me and job me if I don't put up the dough. It's a fight to a finish. At the other end there is either Sing Sing or the death chair. There ain't no hope. I'll live and die a crook."

Two years later I read that my friend the cracksman and his pals had been caught trying to blow up a safe in a most daring and scientific manner. And the whole gang was sentenced to Sing Sing for a long term.

XVII

A Jewish pickpocket is one of the patients who is under suspicion of faking. The young doctor suggested my watching him, and when I reported, he declared that he was satisfied in his suspicion, but did not send him to his cell at once, as he would have been punished.

Meanwhile he helps and amuses us with stories of his checkered career. At first I could not make out what was the matter with him. He couldn't walk any distance without jerking his head backwards. I thought he suffered from some peculiar nervous trouble in the muscles of the neck. When I asked him about it he confessed that it was a habit formed by years of unconscious but very useful watching to see if he was followed by detectives. Even in the hospital, when he knew that he was not followed, he would throw his head in quick glances backwards.

He told us that the last time he had been caught by the detectives he was taken to headquarters and given a taste of the third degree. As he wouldn't confess, the brave detectives, wearing masks, beat him until he was insensible, and even broke two of his front teeth. The generous head of the detectives promised that if he did not make a complaint to the newspapers he would see to it that he would be sent for only a year to the penitentiary instead of up the river for several years.

We have several pickpockets in the hospital. One of them has grown a beard; he is a Jew, tall, thin but muscular, and when he walks to the bathroom in his night shirt, he seems like a caricature of one of the prophets of his faith.

He volunteered to rub sulphur ointment on my body as the doctor had ordered. The strength of his muscles, and the vise-like grip of his hands, was almost beyond belief. When he took hold of my arm to massage it I felt that he could easily have broken it with a quick blow; but he was very gentle and kind withal.

A red-headed consumptive, who killed his wife and child in a fit of anger and jealousy, was sent over from the Tombs while waiting for trial. He ordered me in a peremptory manner to do something for him. I repeated to him the lecture I had read to the bulldog negro, but he lost his temper, and

began foaming at the mouth and abusing me in a violent and insane fit of anger.

I did not answer, as I felt that he was not responsible for his actions; and left him alone. Fifteen minutes later he came into the bathroom, where I was cleaning some medicine bottles. I fully expected to have to defend myself against an attack. Instead of that, however, he began apologizing for his unwarranted behaviour, adding that when he lost his temper he did not know what he was saying or doing; that anger went to his head like poison and completely overcame his reason. He begged me to forgive him and accept his apology.

This is the third time that a convict has offered an apology for having lost his temper and used profane language to me.

I asked one of the convicts who had apologized if he thought I had kept silent because I was afraid of him. "No," he said. "The man who loses his temper is the one who is afraid. The one who never becomes angry is never afraid; he is the better man of the two."

XVIII

I had been three months in the hospital before I began to suspect that I would never get over my skin disease so long as I wore the tattered and patched striped trousers which had been handed to me on my arrival. Therefore I begged the hospital keeper for permission to get a new or at least a clean pair. He told me to go downstairs to the head keeper's desk. The reception I got from the head keeper was not surprising, but his sudden burst of anger and his intemperate language puzzled me not a little. As soon as I approached him he turned around sharply and shouted: "What the h—— do *you* want?"

Before I had time to complete my request he interrupted me, and shaking his fist at me, yelled: "A pair of trousers! What do you think of that dude in the hospital wanting a new pair of trousers! Go on back to your hospital, you dirty bum. You ——! Get out!"

I turned back slowly without answering, trying meanwhile to puzzle out how I could represent two such different social extremes in the mind of the

irate keeper—a dude and a dirty bum!

When I related the incident to my hospital keeper, he shook his head and declared the head keeper an uncouth, stupid animal, and promised to speak about it to the Deputy. Next day a runner brought me a brand new pair of striped trousers, which looked quite becoming and a good fit after the rags I had worn for so long.

XIX

A great many doctors come to visit the hospital. Sometimes the young students from the city hospital, then the aristocratic and famous surgeons who operate on desperate cases, specialists, all grades and classes of physicians, enter accompanied by the little doctor who lives upstairs on the top floor. His name is B. Davidson. He is so small that he seems almost a schoolboy; his eye-glasses are the only elderly thing about him. But he is very efficient, scrupulous and—a marvelous thing in prison—humane in his treatment of the convicts.

The warden and the keepers hamper him continually in his work, as he will not listen to their opinion about convicts who, according to them, are all fakers. They have the temerity to place their ignorance, and their hatred of the prisoners, against the professional knowledge and humanity of the doctor.

The boy who had a tumor on his back was kept a week locked in a cell, and was not allowed to see a doctor, because the keeper claimed that he was faking. The doctor laughed when he related the story. "Imagine anybody faking a tumor the size of a cocoanut!"

In the opinion of most prison keepers, every man who reports on the sick list is an incipient faker. The sick man has to inform his own keeper and he is then reported to the head keeper. Should they diagnose the case as a fake, then the prisoner is shoved back gently to the line; but should the convict in spite of their verdict insist that he is sick, he is locked up in a cell to get

well without a doctor, or to rot in it, until even the doctor's help is of no avail.

Most cases of consumption, paralysis, insanity, or any internal disorder, are considered fake cases. Only when a man breaks a limb or splits his head open, or when some disease "breaks out" on him, is he believed to be sincere.

The sturdy young sailor who had worked at my side in the tailor shop was brought to the hospital. He was so changed that I hardly recognized him. I had to ask him his name, and if he remembered having worked in the same shop with me, before I became convinced that he was the same man.

They kept him locked up in a cell a whole week before the doctor was permitted to visit him, and then they discovered that he was suffering from typhoid fever. Meanwhile he had been eating food from tin plates which were washed in the kitchen.

A convict who was in perfect agony from neuralgia of the teeth was visited twice. As no cavity could be discovered, they punished him by extracting forcibly three perfectly healthy teeth from his jaw.

This incident was related as a great joke by a young assistant to a doctor, to two companions who were preparing a patient for an operation.

A pair of prison-made shoes, with a nail sticking up inside the heel, was forced on a new-comer by the head keeper. When he protested, he was abused, insulted and threatened with punishment if he did not put on that particular pair of shoes. For two days the unfortunate man hobbled about, working in the kitchen, trying as best he could to ease the intense pain on his heel inflicted by a rusty nail. His foot began swelling and, made desperate by the pain, he finally refused to work until he had seen a doctor. When the doctor examined him, he discovered that he was suffering from blood poisoning of the foot, and he had to be kept over two months in the hospital.

A boy was discovered, by accident, working in the bakery suffering from a loathsome venereal disease.

The young doctor could not stand the persecution of the system, and he left in disgust.

The new doctor is a sallow-faced, green-eyed individual, evidently a dope fiend. He leaves morphine hypodermic syringes lying all over the place; and any one who wants an injection can have it for the asking. Luckily for us, he did not stay very long.

One night we were kept awake by heart-rending, piercing howls, which came from the apartment occupied by the doctor on the top floor. He had, as we found out later, taken an overdose of morphine.

Next day he appeared in the hospital, staggering sideways, breathing heavily and with a hollow sound, like a damaged bellows. His body shook as if with the palsy, his hands trembled as they groped for support; and all the while he was moaning, whining, grunting. He fell into a sitting posture on the floor, and began catching imaginary flies on his sleeves.

We had to carry him upstairs and put him to bed. He went away the next day.

The doctor who succeeded him is a young man who seems sympathetic and efficient, but he has to keep his job, and so he takes orders from the consulting keepers, who diagnose cases before he is allowed to see them or to send them to the hospital.

XX

The conversation at our meals in the hospital table d'hôte, although carried on in an undertone, is very often amusing and enlivened by quite witty repartee. The table manners of the men are not as bad as might be expected from the motley crowd which adorns our board. All the nationalities and races and classes of this wide world have been waited upon by us: negroes, Chinamen, Mexicans, Slavs, Italians, Jews, Hungarians, Arabs, Syrians, Hindus; members of all the different professions, such as waiters, lawyers, hold-up men, capitalists, fortune tellers, doctors, sneak thieves, bankers, bums, dentists, burglars, "sky pilots," grafters, butchers, gamblers, street car conductors, confidence men, tailors, insane men, tramps, crooks, horse poisoners, saloon keepers—everybody and everything!

In a restaurant, in a public café, in a barroom, one meets or sees many people whose profession or real status is a mystery, and often a secret; but here everybody's profession, character, antecedents, sentence, criminal record, are known, judged and commented upon. Here nobody can put on airs because he has a fat bank account, finer clothes, more expensive jewelry, better family connections, or greater political influence. A man is judged by his character, his personality, his attitude toward the prisoners and the keepers. This is one place where fine feathers do not make fine birds.

The appetite of the men, with the exception of the sick, is always of the best. They are very particular about the quantity as well as the quality of the food. There is no reason to complain about it, except the coffee, which is served downstairs, and which is no coffee at all, but roasted bread crust which spoils the water in which it is soaked. Many a man would prefer pure water to the unsweetened, light-brown mixture, called "bootleg." It isn't even near coffee, but it is insidiously named "coffee," so as to prove to the public that the convicts are pampered and spoiled.

One day a member of the Prison Commission who was visiting the penitentiary picked up a tin cup of "coffee" which was standing in the mess hall, where the convicts were watching the visitors testing the food which had been picked out for that purpose. The Commissioner drank half a mouthful of the "bootleg," and then, with a wry face, swiftly spat it on the floor. The convicts did not laugh; they were too well disciplined for that; but an almost imperceptible whispering titter swept all over the mess hall like a June breeze wafting over a wheat field.

XXI

The other day a man was brought up to the hospital to have his broken arm bandaged. He had got up in the mess hall and started to voice a protest against the rotten meat. Two keepers jumped on him with their sticks and beat him until he was insensible. Later the "Dep" came upstairs to look him over, and said: "So you think you are a tough guy!" The man kept silent; but later he was sent to the "cooler."

There is an old Italian tailor in the hospital who has become popular because he mends our socks and makes pockets in our trousers. He eats enormous quantities of food, and after he is through he wipes his mouth with the crust of bread which does service for him as a napkin!

A dope fiend, who had kept us awake five nights: in succession, was allowed to sit at the table after he had broken his fast with milk. He was warned to eat sparingly. One Friday, as fish was served and I knew only two pieces had been eaten, I was wondering where it all had gone when I emptied the dishes in the garbage can. Out of sixteen pieces of fish that had been served, only two could be accounted for. I turned to look over the room, and I noticed our dope fiend still chewing away at something. Then I noticed the shirt round his belt bulging in an unusual fashion across his very lean body; and I was surprised to discover what had happened to the missing portions of fish.

Not satisfied with having eaten two pieces of fish, our dope fiend had stuffed the other fourteen pieces inside his shirt, so as to make sure that he would have enough food to last him through the night.

For five consecutive nights he had kept us awake with his moaning and raving, sitting upright in his bed, swinging his body back and forth pendulum fashion. He could not keep anything in his stomach, either food or water. He begged piteously for an injection of morphine, but the new doctor was obdurate; he said that it was either cure or kill. When the morphine was eliminated he became himself again, and he was cured of his habit. Some morphine fiends die from the stoppage of the supply, but many of them are effectively cured.

A bald-headed, consumptive negro keeps us in constant laughter—when prison lets us laugh—with wonderful and never ending stories of his adventurous life. Even the doctor will stand by the hour listening to his quaint speech and stories. Although he is an old rascal and an old offender, one cannot help liking him for his cheerful, gay attitude towards life.

He related how one time, after serving a term in the reformatory, he went back to his wife in New York. She lived in an apartment on the ground floor, and she seemed to be happy to see him again. She inquired about his health and asked about his future prospects. While they were talking he

heard somebody opening the front door with a latch key. He became quite nervous, and asked his wife who it was that dared to come in without ringing the bell. "Dat's de husband I'se married while you was in jail; and he's a big black coon," she said.

He jumped hastily through the window, he confessed to us, so as not to embarrass husband number two, and leaving behind a grip with his clothes. He came back next night to get his belongings, and he used the window this time as a means of entrance. But fate was against him. As he emerged from the window again he fell into the arms of a watchful policeman, who promptly arrested him. Being an ex-convict, he was sentenced to a year in the penitentiary, as he said, for stealing his own pants!

A tall, blond Pole behaved in such a disgusting manner at the table that the keeper ordered him back to his bed.

The first two weeks that he was in bed we could not induce him to get up to perform the most normal animal functions. But, as there did not seem to be anything the matter with him, he was finally forced to get up and go to the bathroom.

For more than two weeks we had plied him with questions—myself, the doctors, and all the convicts who knew different languages. He looked at us with his big, blue eyes, shaking his head as if he did not understand what we were talking about. We finally came to the conclusion that he either spoke some unknown language, or that maybe he was deaf and mute.

One day Richard, the young assistant, made him get up, but instead of walking, he crept on all fours to the bathroom. Then he got up like a human being and started drinking water from the faucet. Richard took him to task for his uncleanness. He said to him: "Wash your face, you dirty pig!" And to the utter amazement of Richard, the supposed deaf mute turned round angrily and said, in perfect English: "You go to hell, will you!" A few weeks later he was taken to Matteawan.

Later I gathered from another Pole who had talked to him and succeeded in making him answer, that he had been a petty officer in the Russian navy,

and that he had mutinied, and later had succeeded in escaping to America.

He had hit upon the idea of feigning insanity in order to foil the vigilant Russian secret service agents, who would be on the lookout for him upon his release from the Island; he feared that they would create an opportunity to "shanghai" him on board a Russian ship, and he knew that they would hang him if he ever was returned to the fatherland. He had been sentenced to sixty days on the Island for vagrancy.

XXII

Protestant clergymen, Catholic priests, Rabbis, Sisters of Mercy, missionaries and even a Theosophist preacher, visit the prison and the hospital regularly. Saturday afternoon is a very busy time for the "sky pilots."

One "sky pilot" comes only during the lunch hour and, walking to the busy table, invariably asks: "Well, boys, how goes it?" He has never been known to change his query in years—and that is the only service he has ever done for the souls of the convicts.

A tall, thin, spectacled, Protestant missionary devotes a great deal of his time to what he calls "saving souls from eternal damnation"; his way of doing this mysterious thing is by leaving tracts on our beds. They contain startling headlines, such, for instance, as this: "Be with Jesus. He is your only pal!"

When I laughed at one of his quotations from the Bible, which I claimed was incorrect, he retorted by saying that my spirit was full of unclean devils. I answered by saying that I would rather be a real devil than a false saint of his type, and he at once proved the truth of my assertion by calling me unseemly and unchristian epithets, greatly to the merriment of the listening convicts and the keeper. I told him to go away from me and let me alone, but fifteen minutes later he came back and apologized for his offensive and undignified behaviour, adding that he had looked up the quotation in a Bible at the keeper's desk and to his great astonishment found that he had been mistaken.

Although I am not of his faith, the Rabbi comes to speak to me every week. He has taken a great interest in my case, and he offers his services to get me a pardon, deploring my attitude in wasting time behind the bars and in the vain hope that my appeal will be successful.

But he is surprised when I inform him that I do not expect to succeed in my appeal, and that I have made up my mind not to accept any favors from the parties who were responsible for my prosecution and imprisonment, so that I can keep my hands free to act in case there are further revelations.

A few weeks later another Rabbi takes his place. A kinder and gentler soul it would be difficult to meet.

The Sisters of Mercy appear every month or so; they are loved and venerated by the convicts. I have noticed that, unlike the other missionaries who take care of our spiritual welfare, the Sisters never ask a convict: "What crime did you commit?" but always: "How long must you serve?" "Have you mother, sister, wife, or children?" "What can we do to help them?"

The Sisters never argue, discuss or theorize about religion, but they help the convicts in the only practical, useful and efficient ways; they visit and appeal to judges and District Attorneys; they call on the families of the convicts and their friends; they furnish money to needy relatives and to the men themselves when they come penniless out of prison.

The Protestant clergymen, the Catholic priests, the Rabbis, the missionaries, as a rule talk only to the men of their own faith. But the Sisters of Mercy speak to everybody, no matter to what race or faith they may belong. They never inquire into a man's crimes; all they ask is to be told of his troubles and worries and to be allowed to do what they can to relieve them.

One of the Sisters is said to be responsible for the elimination of stripes in Sing Sing.

XXIII

Convicts have a cunning and peculiar way of revenging themselves on bad and cruel keepers. When one of that type is put on night duty, following a

prearranged sign the whole section suddenly starts a tremendous hullabaloo. Several hundred convicts, acting in unison, begin yelling, cat-calling, grunting, roaring, whistling, stamping their feet, beating the bars of their cages with tin cups and pail covers. The enraged keeper jumps up and down the tiers in a vain effort to catch the arch offenders, but on his coming a signal is passed to the whole tier, which suddenly becomes silent, the other sections in the meanwhile increasing the noise and disturbance until the warden appears. His presence seems only to put more zest, energy and lung power into the demonstration. Revolvers are fired to intimidate the men and they are threatened with dire punishment, but nothing seems to be able to quell the rebellion, and it is continued every night until the offending keeper is shifted.

These prearranged, noisy riots are rare and as a rule they occur only in cases when bad food or a series of persecutions have goaded the prisoners to the only real expression of protest which can be effective.

One night during the Hudson-Fulton celebration in New York, when all the city was gaily illuminated, and all the bridges were picked out in electric lights, and music and shouts could be heard in the distance, a rumpus started on a magnificent scale after the convicts had been locked up in their cells.

The whole prison seemed literally to have gone insane. The pandemonium let loose was so terrific that it could be heard both from the New York and the Brooklyn sides of the river. The warden and the keepers were perfectly helpless; they could not subdue the prisoners, who kept up their infernal racket for hour after hour, and stopped only from exhaustion, when there was no more lung power to draw on. This noisy and turbulent protest of a whole prison defying one of the strictest rules of jail law was a strange psychological curiosity; a mad, reckless, stentorian rebellion against the rules of silence when the great metropolis was heard noisily rejoicing across the river.

Prisoners are very quick to find out a bad or a good keeper, an honest or a grafting keeper.

Humane keepers always and invariably get the best results. They maintain discipline with very little effort, and the prisoners themselves see to it that the attitude of such keepers is not changed or embittered by malicious and silly conduct on their part or that of their companions. The foul-mouthed, brutal keeper never seems to be able to maintain discipline, and when he revenges himself by inflicting unjust punishments the men retaliate by all kinds of persecutions.

An unjust and exceedingly brutal keeper was waylaid one night on his way home by some released convicts, who "beat him up" in such a manner that he was sent to a hospital for almost a month.

The Jewish and Italian convicts are often victims of the persecutions of some keepers, who heap ridicule and injustice and punishment upon them. The "guineas," the "wops," the "sheenies" and "kikes," find no mercy at the hands of these keepers, who consider men of these races as inferior, fit only to be brutalized, slowly but surely, into superior races.

An Irish keeper said jokingly to an Italian convict who could not understand something in connection with his work:

"Let an Irishman show you. You dagoes don't know nothing. How does it come that they pick Popes from among the wops, I wonder?"

"Yes, sir," answered the Italian, "and never in two thousand years did they pick out an Irish Pope."

XXIV

The outlook from the windows of our hospital is a source of never ending interest.

We can watch the grass grow and the trees, the birds hunting for food, the hospital cat waiting patiently under a bush for a stray sparrow, the orderly of the warden, haughty and always in a hurry, followed by a yellow dog. Another orderly is a red-headed young man who is called a "sugar man." He and two other men are the "goats" for the higher officials of the Sugar Trust.

We watch the visitors come in from the boats; the doctors, the officials, the prisoners arriving escorted by the sheriffs. The average prisoner is well dressed; some of them are quite dandified in their appearance, while others are poorly dressed, some of them even without an overcoat in winter time. One day a bum came, escorted by a sheriff, all alone, with a straw hat, at the height of the winter season.

The other morning a big, square-shouldered tramp was following the sheriff in a lazy, shuffling manner. There was no hat on his long, dishevelled mop of reddish hair; his beard was of enormous proportions; his face was brick red, as well as the hands, from dirt and exposure to the air. A coat and trousers which almost dropped from his body, so ragged were they; no shirt, no underwear, and a pair of shoes through which his toes peeped smilingly, completed his wardrobe. A sudden gust of wind would have divested him of all covering.

Half an hour later I happened to pass near the head keeper's desk, and I could hardly believe my eyes when I beheld that tramp. In his case the transformation was highly creditable to prison methods. They had clipped his hair, cut his beard, given him a bath, covered him with a striped shirt and a striped suit, and he was standing in brand-new, prison-made shoes. He looked indeed like a gentleman as compared with his former wild, dirty, disreputable and pitiful appearance.

On Sunday droves of visitors come to the island on the 23rd Street boat. The women are more numerous than the men; poorly dressed women are in the majority; often flashily dressed women with expensive fur coats and stylish hats are seen elbowing old and homely women wearing shawls and with babies on their arms. Almost everybody carries packages of fruit to the inmates. Little boys and girls often accompany the women, and handkerchiefs are often raised to wipe away tears. It is a tragic, fateful, unhappy procession.

XXV

The first and the last week seem longest in the term of imprisonment. During the rest of the time the hours pass in swift succession, as the work

and the regular hours help to shorten the time; there is a spirit of patience, and the mind becomes more and more introspective and philosophical.

But in the last week all the thoughts, the plans, the ambitions, the discoveries of a new future, seem to be concentrated. The minutes drag by with a laborious and torpid slowness, and there is an intensity of time which seems to crowd sixty hours into one single hour by the clock. The ordinary patient, often of a cheerful habit of mind, is of a sudden transformed into a cranky, impatient, unruly, violent attitude.

During that last week I very nearly got into trouble, for the first time in my ten months of imprisonment "with good behaviour;" and this when an impertinent answer might have kept me two months longer within this barred prison.

A keeper known and hated for his brutal and insulting attitude towards the prisoners was relieving our own hospital keeper during the lunch hour. He was watching the prisoners file into the room at the opposite end of the hospital to wait for the arrival of the dentist. A belated man came in holding a handkerchief close to his mouth as if he were suffering from an agonizing toothache.

The keeper spoke: "Who is that dirty bum?"

"What do you mean?" I said.

"I mean who is that dirty bum who just came in?" he repeated.

"I don't understand you," I rejoined, angry at his remark.

"I see you're rather particular about expressions," he said in a surprised tone.

"Yes," I retorted, "and I don't see what right you have to call an inoffensive convict a dirty bum, when if it wasn't for us dirty bums you wouldn't be sitting here now."

The situation was saved by an old Irish keeper who added laughingly, "That's right, you wouldn't be getting twenty-five per a week to keep a chair from flying out of a window, if it wasn't for those dirty bums."

XXVI

Only after a long while did the influence, the pernicious influx of the thought waves emanating from hundreds of convict minds, begin to play on my mind. I never imagined that convict habits and thoughts could touch me or have any effect on my inmost thoughts, my better self. During the day, in fact, when the conscious mind was active, nothing seemed to effect my habitual, set and crystallized character, my old trend of mental, moral and intellectual associations.

Only in the last month, during my sleep or half-sleep, did I recognize the ascendancy of the magnetic, unhealthy, collective thoughts of the prison. They arose slowly, like poisonous miasmas, insidious and permeating, with a persistency that amazed my startled and thoroughly alarmed consciousness.

Thoughts, images, desires, which I had been used from my youth and all through my life to consider unhealthy, degenerate or simply unworthy of my attention, came sneaking into my subconscious mind, in the form of disgusting, appalling, terrifying dreams. The back yard of my mind had begun to register and absorb all the wretched, unclean, monstrous, unmentionable yearnings, desires and actions of the collective prison dreams; it was inhaling the moral stench which arose as from a "cloaca maxima."

I thought of all the weak, unbalanced, receptive young minds which must have been corrupted by this intangible, powerful magnetism; and of how this unnatural, abnormal, degrading prison life began in any absorbent or indifferent temperament a slow corrosion and led to a complete and effective disruption and destruction of all moral and intellectual integrity.

I felt as if hundreds of unspeakable and undreamed of sins, taking shape of gliding snakes, noiseless and black, with glittering eyes and fiery tongues, were descending upon me, winding round my body and my legs and arms, fastening their pin-like fangs in my flesh to poison my brain and body.

And I thanked my stars and my fate and my power of will when the last night of my sentence arrived to relieve me of an oppressive, suffocating succession of nightmares.

I did not sleep one solitary wink, but how rosy, exquisite, exhilarating, radiant, were the thoughts that filled me on that prison cot, how transparent those bars seemed on that last night, never to be forgotten, like the first night I spent in that horrible dungeon.

XXVII

I am finally called downstairs. The sun streaming through the narrow bars gives the gloomy prison almost a bright appearance. Hastily I put on my street clothes. I feel like a man putting on a strange, exotic costume for a fancy dress ball; the collar and necktie seem to choke me with a kind of joy and affection. Accompanied by my lawyer, I walk out of the fateful gates, and then I turn to look back, and to glance upwards to the hospital windows where the patients and the old keeper wave a friendly salute and farewell.

Friends are waiting to greet me at the other side of the river. I look in wonder and amaze at the people in the streets. Everything is so interesting; the most commonplace and sordid sights are delightful and picturesque. The men; the women, with their wonderful clothes; the sky, the houses, the cars, the signs, everything, seem so novel, so friendly; every minute so precious, so full of surprises and possibilities.

I have grown fat and pale in prison, but my spirit is as light and quick as the spirit of a humming bird. Everybody greets me as a traveller returned from a strange, unknown, and very distant land—and yet all the while I have been living in the very heart of the metropolis. Everybody seems to realize and to reassure me that the acceptance of a pardon would have been a grievous mistake. To refuse it meant a great sacrifice, but making that sacrifice has confirmed a general suspicion that unfair methods, dangerous to American traditions, have been used against me.

The day of reckoning will come in time. Meanwhile, how beautiful, perfect, intoxicating is the sense of untrammelled liberty! It repays me for many a dark, tragic hour.

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